VANCOUVER PUBLIC SCHOOLS
VPS
Legal Department

Notice

Updates to the following attached procedures have been approved by Superintendent, Jeff Snell, and are scheduled to be posted online at www.vansd.org

- Procedure 2190, Highly Capable Programs
  - Posted on February 28, 2025

- Procedure 2410, Graduation Requirements
  - Posted on February 28, 2025

- Procedure 6600, Transportation
  - Posted on February 28 2025

- Procedure 3205.1, Sex Discrimination and Sex-Based Harassment of Students Prohibited – Grievance Procedure
  - Repealed on February 28, 2025

- Procedure 3205.2, Sex Discrimination and Sex-Based Harassment of Student Prohibited, Implementation Procedure
  - Repealed on February 28, 2025

- Procedure 3205 – Sexual Harassment of Students Prohibited
  - Posted on February 28, 2025

- Procedure 5011, Sex Discrimination and Sex-Based Harassment of Staff Prohibited
  - Repealed on February 28, 2025

- Procedure 5011, Sexual Harassment of District Staff Prohibited
  - Posted on February 28, 2025

(DRAFT 01-14-25)

Procedure – Highly Capable Programs

I. Definitions

A. "Highly capable students" are defined as those who perform or show potential for performing at significantly advanced academic levels when compared with others of their age, experiences or environments. A highly capable student's outstanding abilities are demonstrated within the student's general intellectual aptitudes, and specific academic abilities, within an academic domain. Students demonstrating these abilities are present in every sector of the student population.

Students who are highly capable may possess, but are not limited to, these learning characteristics:

1. Capacity to learn with unusual depth of understanding, to retain what has been learned and to transfer learning to new situations;

2. Capacity and willingness to deal with increasing levels of abstraction and complexity earlier than their chronological peers;

3. Creative ability to make unusual connections among ideas and concepts;

4. Ability to learn quickly in their area(s) of intellectual strength; and

5. Capacity for intense concentration and/or focus.

B. "Parent" means a parent, guardian or person having legal custody of a child. If the student is eighteen (18) years or older, or is legally emancipated, the procedures for the parent in this regulation may be exercised by the student.

II. Annual Notification

Annually, the district will distribute public notifications prior to any identification activity for highly capable services. Public notification will occur in multiple ways including, but not limited to the district website, electronic mail and school newsletters.

III. Program Goals

A. Goals of the highly capable services program include:

1. Identifying students who are performing at significantly advanced academic levels when compared with others of their age, environment and experience;

2. Providing a continuum of program services for identified students in grades two (2) through twelve (12);

3. Monitoring of students in kindergarten (K) through first (1st) grade who demonstrate advanced academic achievement;

4. Providing appropriate and relevant professional staff development opportunities that maximize instructional effectiveness for highly capable learners;

5. Engaging in ongoing program evaluation and revision; and

6. Prioritizing equitable identification of low-income and historically underrepresented students.

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IV. Referrals

Teachers, other staff, parents, students and members of the community may make referrals for all grade levels. Referrals will be accepted January through May 31st. Referral decisions will be made no later than July 1st.

V. Continuum of Services

A. Once highly capable services are started, a continuum of services will be provided to identified students in second (2nd) through twelfth (12th) grade. Additionally, the highly capable designation for students in grades six (6) through twelve (12) will be considered each year when forecasting student placement.

1. The highly capable services office will keep on file a description of the pathway of services provided for each identified student.

2. The district will review services for each fifth (5th) grade student to ensure that the services are appropriate prior to middle school.

3. Selected supplementary materials must align with Washington State learning standards.

4. Instructional practices must emphasize depth and complexity through subject extensions and/or acceleration.

B. Elementary School Services

1. In kindergarten (K) and first (1st) grade, students will be informally identified based on academic achievement and placed on a highly capable monitoring list. The highly capable department will reconcile students' academic achievement data with ability assessment data in second (2nd) grade. Informally identified students in kindergarten (K) and first (1st) grade will receive extensions and differentiated instruction at their neighborhood school.

2. Students in second (2nd) grade will receive services through differentiation and/or cluster grouping. Cluster grouping may not be offered by the neighborhood school.

3. For students in third (3rd) through fifth (5th) grade, the district will determine one of two pathways for services based on ability and achievement data. Students may receive services in the form of differentiated instruction at their neighborhood school; or students demonstrating the highest levels of ability and achievement data may be invited to attend an intensive highly capable support classroom at a designated elementary school.

C. Middle School Services

Highly capable students in sixth (6th) through eighth (8th) grade attend their neighborhood middle school and may take honors level English/language arts courses which incorporates depth and complexity. Students who meet course placement criteria may also take advanced and accelerated mathematics and science courses at their neighborhood school and have opportunities to begin earning high school credit in mathematics, world languages and science. Students who take high school courses during middle school must apply to receive credit for those courses once enrolled in high school.

D. High School Services

For highly capable students in ninth (9th) through twelfth (12th) grades, highly capable options means continuing their high school and beyond plan by taking advantage of options for advanced course work that may give dual credit for high school and college courses. School counselors provide students information on the following programs:

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1. Advance placement;
2. International Baccalaureate;
3. College in the High School; and
4. Running Start.

VI. Student Eligibility

A. Students in second (2nd) and fifth (5th) grades who are currently enrolled in a school within VPS district boundaries and reside within those boundaries, will receive universal screening and data review for VPS highly capable services program during the district's designated window. Parents may opt out or refuse universal screening and/or the data review.

B. Students in second (2nd) and fifth (5th) grades who are currently enrolled in a VPS school on a boundary exception and reside outside of VPS boundaries, will receive universal screening and a data review for the VPS highly capable program services during the district's designated window, unless parents opt out.

C. Students who currently live within VPS boundaries but do not attend a VPS school are not eligible for universal screening or a data review for VPS highly capable services.

D. Students who reside outside of VPS boundaries and do not attend VPS schools on a boundary exception are not eligible for universal screening or a data review for the VPS highly capable program services.

E. Students not identified through the data review may have a referral form submitted on their behalf during the district's designated window.

VII. Elementary Identification Process

A. The purpose of universal screening is to include students who traditionally are not referred for highly capable programs and services. Students discovered during universal screening may need further assessment to determine whether the student is eligible for placement in a program for highly capable students. The District will consider at least two student data points during universal screening, which may include previously administered objective standardized, classroom-based performance, cognitive, or achievement assessments, or research-based behavior ratings scales.

B~~A~~. Kindergarten (K) and first (1st) grade students will be informally identified through achievement data and placed on a district monitoring list for highly capable services. Identified students on the monitoring list will be reconciled with formal identification in second grade.

C~~B~~. Second (2nd) ~~and fifth (5th)~~ grade students will be screened for highly capable services using a non-verbal ability assessment. Achievement and behavior rating scales for characteristics of highly capable students may also be used in the identification process.

D. Fifth (5th) grade students will be screened for highly capable services using achievement data. Behavior rating scales for characteristics of highly capable students may also be used in the identification process.

E. Third (3rd) and fourth (4th) grade students will not participate in universal screening but may be referred for services by a teacher, parent, or community member. Students who are referred will automatically have their data reviewed by the Multi-Disciplinary Selection Committee (MDSC).

VIII. Multi-Disciplinary Selection Committee (MDSC)

A. The (MDSC) will make identification and placement decisions by evaluating individual ability and achievement data for students during the data review process to determine a need for highly capable

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services.

B. The MDSC is comprised of a certificated teacher with training and experience in teaching highly capable students, a school psychologist or other qualified practitioner with training to interpret cognitive and achievement test results; a certificated coordinator or administrator with responsibility for the supervision of the district's highly capable services program, the district's equity director or designee, the district's multilingual director or designee, and additional professionals, if any, that the district deems appropriate.

C. The MDSC will use the district's highly capable services ***determining eligibility protocol*** when identifying students for highly capable services for the following school year. Evidence of a clear need for highly capable services must be present. A single non-qualifying score on any assessment will not prevent a student from qualifying for highly capable services.

IX. Notice of Eligibility

The district will:

A. Notify parents of eligible students by electronic mail, the notice will include:

1. Information about the district's highly capable services in kindergarten (K) through twelfth (12th) grade;

2. An explanation of the procedures to exit a student from services; and

3. A parent permission form. Parent permission is required before any student is formally identified.

B. Provide electronic mail notification to parents of students who are deemed not eligible for services by the MDSC, along with an explanation of the appeal process; and

C. Compile a list of students identified to receive highly capable services.

X. Secondary Identification

Students in eighth (8th) through eleventh (11th) grade are encouraged to work with teachers, counselors, administrators, and their parents at each individual building to forecast for advanced level course work opportunities in alignment with their high school and beyond plan for the following year. All students will have pathways to advanced courses and do not need a highly capable designation to be placed in advanced courses.

XI. Service Recommendations

A. Elementary School

1. Kindergarten through second (2nd) grade services will be provided through differentiated instruction in the general education classroom at the student's neighborhood elementary school.

2. Identified elementary school students in third (3rd) through fifth (5th) grade, who meet placement criteria will be served through one of two service models (listed below). Parents can accept or decline the service recommendation of the MDSC.

a) Service Model 1: Identified students will have services provided through differentiated instruction in the general education classroom at their neighborhood elementary school; or

b) Service Model 2: Identified students with the greatest need **as determined by the MDSC *determining eligibility protocol*** will be invited to the Intensive Highly Capable Support (IHS) classroom at a designated elementary school site. Transportation for this service model is not provided by the district.

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3. Siblings of highly capable students enrolled in an IHS classroom who wish to attend general education classes at the same school site must follow procedures listed in Procedure 3131, District Attendance Area Transfers.

B. Middle School

Students will attend their neighborhood school and be placed in courses that align to their ability and achievement data.

C. High School

Students in eighth (8th) through eleventh (11th) grades work with teachers, counselors, administrators, and their parents at each individual building to forecast for advanced-level coursework opportunities in alignment with their High School and Beyond plan for the following school year.

D. Transferring into the District

1. Members of the MDSC may also identify a student as highly capable who has transferred from another district or school in which the student was identified to receive highly capable services. However, the placement criteria used by the former school district must be equivalent to the highly capable placement criteria used in Vancouver Public Schools. The MDSC may require additional ability assessments to qualify for services in VPS.

2. The student's parent will need to provide the highly capable services office with the following documentation from the student's former school district before a determination is made regarding specific program services for the student.

   a) Description of the highly capable services program and placement criteria;

   b) Student data that identified the student to receive highly capable services; and

   c) Documentation of the student's enrollment in a highly capable program.

XII. Process for Appeal

A. If parents disagree with an eligibility decision, they may submit a written request for an informal conference with highly capable staff. Parents must request the informal conference within five (5) business days of the date of the eligibility decision. The informal conference will be held within ten (10) business days of the parent's request.

B. If concerns remain unresolved after the informal conference, parents/legal guardians have the right to submit a formal appeal to the MDSC. Parents must initiate the formal appeal by completing an appeal form online or in writing.

C. The written notice of appeal must be received within five (5) business days of the unsuccessful informal conference. A minimum of three (3) members of the MDSC will convene to discuss the appeal, review student data, and make a final recommendation. As part of the appeal process, the MDSC will collect and review new data. The new data may include:

1. Ability assessment data (if it does not already exist);

2. Writing and/or work samples; and

3. Teacher interview.

D. The MDSC will review the data to determine if a highly capable service need exists that was not measured by other data collected or new data corroborates skills and abilities not previously measured.

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E. Parents/guardians will be notified in writing of the MDSC decision, as soon as possible but not longer than thirty (30) calendar days after receipt of the initial formal appeal. The decision of the MDSC is final.

XIII. Exit Process

A. District Initiated Exit Process:

The exit process may be initiated by district staff to determine whether a student continues to benefit from highly capable services. District staff will follow the highly capable services office protocol for discontinuation of highly capable services.

B. Parent Request to Withdraw

A parent/legal guardian may request that the student be withdrawn from receiving highly capable services at any time. If the parent wants to reinstate highly capable services, the parent must refer the student for rescreening for highly capable services.

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APPROVED:

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Dr. Jeff Snell, Superintendent Date
Vancouver Public Schools

Procedure - High School Graduation Requirements

I. Publication of Graduation Requirements

A. Starting in the eighth (8th) grade and each year thereafter, middle and high schools shall provide each student and parent/guardian with a copy of the high school graduation requirements applicable to each student. The school will also provide a progress report of each individual student's progress toward meeting those requirements at the close of each school year. If a student is not making normal progress toward such requirements, the high school shall notify the student and parent/guardian of alternative education experiences, including summer school opportunities available in the community, if any, or in close proximity (WAC 180-51-045).

B. Graduation requirements in effect when a student first attends high school shall be in effect until that student graduates. The student, however, shall have the right to graduate in accordance with the requirements in effect for the school for any year that the student is enrolled in high school.

II. General Requirements for Annual Enrollment -- Grades 9-12

A. Full-time enrollment required: unless prior approval from the principal or designee, a student will be enrolled in no less than six (6) subjects each semester.

B. At least three (3) academic subjects are recommended for study each semester.

C. "Academic" subject defined: a subject which calls upon use of the combined skills of rationalization - reading and analyzing - and of writing, as requisites of the learning process.

D. One (1) period of early release or late arrival may be granted by the building principal on an exception only basis. This option will be limited to twelfth (12th) grade students.

E. If it is determined that employed students' workloads are in excess of four (4) hours per day and are a major contributing factor to their lack of academic progress, the principal or designee will counsel these students and will caution them that such work may impede normal progression toward earning a high school diploma.

III. Credit Requirements

A. Period of Eligibility to Earn Credits

Generally, credit towards high school graduation will be earned in grades nine (9) through twelve (12). However, unless requested otherwise by the student and the student's family, the district will award high school credit towards fulfilling graduation requirements to a student who has completed high school courses while in seventh (7th) or eighth (8th) grade if one of the following applies:

1. The course was taken with high school students, and the student successfully passed the same course requirements, and examinations as the high school students enrolled in the class; or

2. The course taught at the middle school level has been determined by the district to be similar or equivalent to a course taught at the high school level.

B. Students who have taken, and successfully completed, high school courses under the above circumstances shall not be required to take an additional competency examination or perform any other additional assignment to receive credit.

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C. At the request of the student and the student's parent or guardian, high school credit earned before high school may be transcribed with a non-numerical grade, such as "pass" or "credit." A non-numerical grade will not be included in the student's high school grade point average (GPA) calculations. High school credit earned prior to high school and transcribed with a non-numerical grade will apply to fulfilling high school graduation requirements.

D. Before the end of eleventh (11th) grade, a student and the student's parent or guardian must inform the school if they do not want credit for the course or courses taken before attending high school or if they want the credit to be transcribed with a non-numerical grade.

E. Credit for applicable courses taken in grades seven (7) and eight (8) will be calculated as follows:

1. Students must complete two (2) years of foreign language at the middle school to receive one (1.0) credit. No partial credit is given; and

2. Students who participate in VPS Dual/Language Immersion Programs may apply to receive up two (2) credits if they successfully complete level three (3) of the target program language in high school. No partial credit is given.

F. Awarding of High School Credit

The district will award high school credit for successful completion of a specified unit of study. A student successfully completes a specified unit of study by doing one of the following:

1. Earning a passing grade according to the district's grading policy;

2. Demonstrating proficiency or mastery of content standards as determined by the district (the district will establish a process for determining proficiency or mastery for credit bearing courses of study); or

3. Successfully completing an established number of hours of planned instructional activities to be determined by the district.

G. Credits from Other Programs

The school counselor will evaluate each student's official transcript to determine graduation year fields, course title, Washington course designation, grade earned, credit earned, and grade point average. The principal or designee is responsible for determining which credits will be recognized by the district for students enrolling from another state approved learning program (public school, approved private school, or home school), or from out-of-state, or out-of-country. The district will accept credits from another Washington public school or accredited state private school or accredited out-of-state public or private school to the extent the credit matches a district graduation requirement, or may be counted as an elective credit. The district will evaluate credits from unaccredited programs or home schools as described in Section VIII. of this procedure.

I. Subject Area Requirements and Approved Courses for Classes <u>of 2020</u> and Beyond

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The following courses are approved for satisfying the subject area requirements as established by the State Board of Education and shall be required of each candidate for graduation:

Subject	**Class of 2020 Career- & College-Ready Graduation Requirements**
English	4.0
Mathematics[1]	3.0
Science	3.0 (2 lab)
Social Studies	
Contemporary World Problems	1.0
U.S. History	1.0
Social Studies (1.0 World Themes: Washington Perspective)	1.0
Career and Technical Education[2]	1.0
Physical Education	1.5
Health and Wellness	.5
Visual and Performing Arts	2 (1 can be PPR)
General Electives	4
World Language (or) Personalized Pathway Requirement (PPR)[3]	2 (Both can be PPR)
Total Credits	**24[4]**

J. Four (4) credits in English.

K. Three (3) credits in mathematics.

1. The three (3) mathematics credits must include Algebra I or integrated mathematics I, geometry or integrated mathematics II, and algebra 2 or a third credit of high school mathematics that aligns with the student's interests and high school and beyond plan.

2. A student who, prior to ninth (9th) grade, successfully completes one or more high school level math courses with a passing grade that is automatically transcribed on the student's high school transcript or a student who demonstrates mastery or competency in high school math subjects and has received credit for them may use those credits to meet the graduation requirement.

3. A student who, prior to ninth (9th) grade, successfully completes one or more high school level math courses with a passing grade and opts to receive no high school credit for that course or those courses or a student who demonstrated mastery or competency in those subjects but did not receive high school credits may do one of the following:

   a) Repeat the course(s) for credit in high school; or

   b) Earn three (3) credits of high school mathematics in different math subjects than those completed before high school. The student must take Algebra I or integrated mathematics I and Geometry or integrated mathematics II in high school, if the student did not complete those courses at a high school level prior to high school. However, the student does not need to repeat courses if the student already took the courses at a high school level.

   c)

4. A student may substitute a computer science course aligned to state computer science learning standards as an alternative to a third year of mathematics so long as:

[1] Students must complete the following mathematics courses in progressive sequence: algebra, geometry, and algebra 2 or other 3rd year math course.

[2] Or 1 Occupational Education credit, as defined in WAC 180-51-067.

[3] Personalized Pathway Requirement (PPR) are related courses that lead to a specific post high school career or educational outcome chosen by the student based on the student's interests and High School and Beyond Plan, that may include Career and Technical Education, and are intended to provide a focus for the student's learning.

[4] Up to 2 credits can be waived locally for students who have attempted 24 credits.

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a) Before substituting the mathematics course, the counselor provides the student and the student's parent/guardian with written notification of postsecondary consequences due to the substitution;

b) The student, the student's parent or guardian, and the school principal or counselor agree to the substitution;

c) The substitution aligns with the student's high school and beyond plan; and

d) The student has not already substituted a third-year science course for a computer science course.

L. Three (3) credits in science.

1. Two (2) science credits must be in laboratory science; and

2. A student may choose the content of the third science credit based on the student's interests and high school and beyond plan, with agreement of the student's parent or guardian. If the parent or guardian is unavailable or does not indicate a preference for a specific course, the school counselor or principal may provide agreement.

3. A student may substitute a computer science course aligned to state computer science learning standards as an alternative to a third year of science so long as:

a) Before substituting the mathematics course, the counselor provides the student and the student's parent or guardian with written notification of postsecondary consequences due to the substitution;

b) The student, the student's parent or guardian, and the school principal or counselor agree to the substitution; and

c) The substitution aligns with the student's high school and beyond plan; and

d) The student has not already substituted a third-year mathematics course for a computer science course.

M. One-half (.5) credit in health.

Per Chapter 28A.231 RCW, each school district must offer instruction in cardiopulmonary resuscitation (CPR) in at least one health class required for graduation. The CPR instruction must have been developed by the American Heart Association or the American Red Cross or be nationally recognized based on the most current national guidelines for CPR. The instruction must include use of automated external defibrillators (AED) which may be taught by video. The district may provide the CPR instruction directly or arrange it through community-based providers such as the local fire department. Students are not required to earn CPR certification for successful completion of the instruction.

N. One and one-half (1.5) credit in physical education.

Physical education/wellness includes, but is not limited to, wellness, fitness, life-time sports, kinesiology, disease prevention, nutrition, personal/family health, substance abuse, human sexuality, and parenting and community health. Parents have the right to have their students excused from human sexuality and must be provided an alternative to the unit of study. Students excused from physical education/wellness pursuant to RCW 28A.230.050 shall be required to substitute equivalency credits as prescribed by the-superintendent or designee.

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1. All high school students are required to complete a minimum of three semesters (1.5 credits) of physical education.

2. The district may excuse a student from this physical education course requirement under RCW 28A.230.050 on account of physical disability, employment, religious belief, participation in directed athletics or military science or tactics, or for other good cause. Such excused students will be required to demonstrate mastery of the knowledge portion of the fitness requirement.

3. ~~Credit for physical education may be waived for up to two (2) of the required three (3) semesters for successful participation in~~ Participation in directed athletics means participation in a complete season of a district sanctioned~~, WIAA and non-WIAA approved school-based~~ interscholastic athletic program~~s~~ or activity (cheer, dance, or drill) or participation in a minimum of 75 hours of a district-approved community-based sport~~in the junior or senior year~~;

4~~2~~. To be eligible for a physical education course waiver, a student must meet the following requirements~~Students must~~:

a. The student has completed one (1) semester of physical education or passed a physical education challenge exam~~as a condition of eligibility~~;

b. The student is enrolled in a full course load of core academic study (no early release/late arrival); and

c. The student must apply for a physical education waiver during the year of participation in directed athletics.~~. One complete season of participation will be required as a condition of waiver for 0.5 (semester) physical education credit. Course waivers are not credit bearing. Awarding of waiver is subject to approval of the team coach, academic counselor, and principal or associate principal for students in good standing per district Procedure 2151, Interscholastic Activities; and~~

5~~3~~. Waiver of the physical education course requirement is subject to the approval of the school counselor or building administrator. Course waivers are not credit bearing. ~~Students must be engaged in a full course load of core academic study (no early release/late arrival). An application for physical education waiver must be completed during the year of athletic team participation.~~

O. One (1) credit in career and technical education.

1. A career and technical education credit is a credit resulting from a course in a career and technical education program or an occupational education credit; and

2. A student who earns credit through a career and technical education course determined by the district or by the Office of the Superintendent of Public Instruction (OSPI) to be equivalent to a non-career and technical education core course will not be required to pass a course in the non-career and technical education subject to earn a credit in that subject. The student earns one (1) credit while meeting two (2) graduation requirements, a career and technical education requirement and the non-career and technical education subject requirement. The total number of credits required for graduation remain unchanged, and the student will need to earn an additional elective credit.

P. Three (3) credits in social studies

It is recommended that World Themes: Washington Perspective be studied during the sophomore year, United States History and Government during the junior year, and Contemporary World Problems (.5) and Civics (.5) during the senior year. These courses should not be taken concurrently. Students who fulfill the Washington state history graduation requirement in middle school through successfully completing three (3) trimesters of Washington studies may substitute AP Human Geography or AP World Studies for World Themes: Washington Perspective during the sophomore year.

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Q. Two (2) credits in world languages or personalized pathway requirements.

1. "Personalized pathway requirement" means up to three (3) credits chosen by a student that are included in a student's personalized pathway and prepare the student to meet specific post-secondary career or educational goals; and

2. "Personalized pathway" means a locally determined body of coursework identified in a student's high school and beyond plan that is deemed necessary to attain the post-secondary career or educational goals chosen by the student.

R. Two (2) credits in the arts. One (1) of the two (2) arts credits may be replaced with a personalized pathway requirement.

S. Four (4) elective credits.

T. Sequential Requirement for English, Mathematics, and Science

1. English, mathematics, and science courses that are required for graduation shall not be applied toward the subject area requirements in RCW 28A.230.090 at a rate exceeding one (1) credit per year. The principal may make exceptions for students:

a) Who transfer from out-of-state who have already earned five (5) or more credits but who will not be able to make normal progress toward graduation with their class without an exception; and

b) Who fail a course and jointly enroll in the failed course and another course in the same subject area if such other course does not require the failed course as a prerequisite and the students are not able to make normal progress toward graduation with their class without an exception.

2. The 3rd year of math and science are chosen by the student based on the student's interest and high school and beyond plan, and approved by the parent or guardian, or if the parent or guardian is unavailable, the school counselor or principal (RCW 28A.230.090).

U. Credit for approved online provider courses may be granted with a two (2) credit limit. Approved course providers have met a minimum qualification and assurances to meet Washington State learning requirements pursuant to WAC 392-502. The following requirements must be met:

1. Prior permission has been granted by the principal;

2. The program fits the educational plan submitted by the student; and

3. Upon completion of the course, the student will submit the final grade to the principal so that the credit may be recorded on the student's permanent transcript.

IV. Running Start

A. The Running Start program allows high school juniors and seniors to attend community college classes (100 level or above) for part or all of their schedule. Students must be of junior standing or above to be eligible for the program. Rising juniors, those who have completed their sophomore year and have yet to begin their junior year, may enroll for up to ten quarter credits, or the semester equivalent, during the summer academic term. Students earn college credit, which is also converted and applied to their high school transcript.

B. The district will provide general information about the Running Start program to students in grades ten, eleven, and twelve and their parents and guardians. This will include information about the opportunity to enroll in the program through online courses available at community and technical

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colleges and other state institutions of higher education, enrollment opportunities during the summer academic term, and the college high school diploma options under RCW 28B.50.535.

C~~B~~. In order to enroll in the Running Start program, students need to do the following:

1. Check with their high school counselor and/or determine the options for demonstrating college level placement via assessments or courses taken. At a minimum, college-level skills scores in reading and writing are required. Students may also qualify based on Smarter Balanced Assessment (SBA) or by having a 2.75 cumulative GPA or higher.

2. Speak with their counselor to assess credits needed for graduation, then decide which courses they would like to take at the college. Note that part-time Running Start students will need to coordinate college classes so that they do not interfere with their high school classes. Full-time Running Start students will generally not be enrolled in courses at the high school, even when the community college they attend is not in session. A student enrolled full-time at a college may use .2 FTE to enroll at the high school for the purpose of accessing college courses online. Student are permitted to enroll in a combined annual average of 1.2 FTE between the high school and the college.

3. Obtain a Running Start verification form from the college or their high school counselor. Work with the high school counselor and/or college to verify course decisions and coverage to tuition via state funding for selected courses. Parent consent is required if the student is under eighteen (18) years old.

4. Register for classes via the college's online registration system. First time Running Start students will need to enroll in the college before completing the registration process. The verification process in "C" needs to occur to ensure state funding for college courses.

5. Work with the school counselor to ensure transmission of the authorization form to the college prior to established deadlines to ensure continued enrollment.

V. College in the High School

A. The college in the high school program is a dual credit program located on a high school campus or in a high school environment in which a high school student may earn both college credit and high school credit by achieving a passing grade in a college level course. A college in the high school program will be governed by a local contract which will include qualifications for student to enroll in the program.

B. Additionally, applicable information regarding student in the program includes the following:

1. Students who have not yet received a high school diploma, and are eligible to be in the ninth, tenth, eleventh or twelfth grades may participate in the high school in the college program; and

2. Student will receive credit for the courses they complete. If a student completes a course for which there is not a comparable course with the district, then an administrator will determine how many credits the student will receive for the course. Such a determination shall be issued in writing by an administrator prior to the student beginning the course.

C. Students may be required to pay a tuition fee to receive college credit for a course. Students will not be required to pay a tuition fee for high school credit.

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VI. Credit for Work Experience

The district regards certain work experience as a part of the secondary school curriculum that may support a student's educational program. The district may grant credit for work experience for students who are legally eligible for paid employment and are at least sixteen (16) years old through career and technical education (CTE) worksite learning and elective credit for paid work experience.

A. Career and Technical Education (CTE) Worksite Learning.

1. The school will supervise the worksite learning experience;

2. The worksite learning experience will specifically relate to the student's CTE pathway;

3. The worksite learning experience will provide a varied job experience that facilitates student growth;

4. The worksite learning coordinator and employer collaborate to develop the student's training plan, and document paid work hours;

5. The district may grant one (1) credit for not less than one hundred eighty (180) hours for instructional work based learning experience and not less than three hundred sixty (360) hours of cooperative work based learning experience through CTE worksite learning. A maximum of two (2) credits may be earned each year for CTE worksite learning;

6. The program standards and procedures align with the state career and technical work based learning standards; and

7. Credits earned from work experience through CTE worksite learning do not restrict students from earning additional credits through elective credit for paid work experience.

B. Elective Credit for Paid Work Experience.

1. Students must submit a proposal for elective credit for paid work experience that aligns with the state requirements and must be approved in advance by the principal or designee ;

2. The approved plan must describe how the paid work experience will develop the student's knowledge and skills necessary to meet the goals of basic education, including those essential to understanding the importance of work and finance and how performance, effort, and decisions directly affect future career and educational opportunities; how the student will demonstrate grade-level growth and proficiency in the state financial education learning standards for employment and income or financial decisions; and identify a work-based sponsor who will supervise the student during employment;

3. The student's high school and beyond plan must be updated to reflect the paid work experience;

4. The district may grant one-half (0.5) elective credit for not less than one hundred eighty (180) hours of paid work experience. A maximum of two (2) credits may be earned throughout high school for elective credit for paid work experience. The hours worked may occur during a student's school day or outside of the regular school calendar;

5. The district will verify the number of paid work hours at least once per term; and

6. Credits earned through elective credit for paid work experience do not restrict students from earning additional credits from work experience through CTE worksite learning.

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VII. National Guard High School Career Training

The district may grant credit for National Guard high school career training in lieu of either required or elective high school credits. Approval by the district will be obtained prior to a student's participation in a National Guard training program as follows:

A. MIL Form 115 or an equivalent form provided by the National Guard will be completed and filed with the school district;

B. The number of credits toward high school graduation to be granted will be calculated, agreed upon by the student, and an authorized representative of the school district, and such agreement noted on MIL Form 115 or such equivalent form; and

C. The district may grant credit toward high school graduation upon certification by a National Guard training unit commander that the student has met all program requirements.

VIII. Foreign Study -- Credit for -- Responsibilities Outlined

A. An official transcript, or some other such official document, of courses taken and credits earned must be provided by the local high school officials, from the foreign school, for the purpose of local evaluation.

B. The transcript, or some other such official document, should include data pertinent to the student's period of attendance, record of attendance, and interpretation of grades given.

C. Provision of course descriptions, from the foreign school, by the student are strongly urged for assisting the local school officials in interpreting and evaluating transcript information.

D. Credit will be allowed where earned.

E. Credit will be computed for the purpose of meeting local high school graduation requirements, by the number of class meetings per week and the number of minutes per each class meeting, in relation to the state and regional accreditation association's standards. A credit/no credit grading system may be utilized when difficulty exists in matching Vancouver Public Schools' requirements with foreign country transcripts.

IX. Home School Credit

Guidelines for granting high school credit for home schooling are as follows:

A. To gain credit for a course of study, a student will provide:

1. Syllabus or list of standards;

2. Student work sample for each standard;

3. Test samples and scores for the course;

4. Standardized test results;

5. Instructional time required for the course; and

6. Student time required for the course.

B. Once approved, these courses and associated credit will be added with a credit ("CR") grade to the student's permanent transcript.

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C. Credit is granted for Community colleges, vocational-technical institutes, four (4) year colleges and universities, and approved private schools in the State of Washington.

X. Transfer from a Non-Accredited High School

A. Students wishing to enroll in the Vancouver Public Schools after having attended a non-accredited high school must meet the following conditions to be considered placed at the level at which the student would have been placed if attending an accredited high school. These conditions of placement in the accredited school system shall also apply to the student graduating the year the student anticipated graduation in the non-accredited school.

1. The student must have reenrolled in the accredited system no later than the commencement of the next regular school year, following the last day of attendance at the non-accredited high school;

2. The student must possess the ability to perform academically at a passing level at the grade level of placement;

3. The student must have earned credits following reentry to the accredited school system at the normal rate; and

4. The student must have commenced and satisfactorily completed the last full year immediately preceding high school graduation at the public high school, or a combination of public high schools.

B. A student requesting such placement must make an appointment to meet with the principal or designee of the assigned school. A conference will be held with the student and parent to discuss the process for determining the grade level placement.

C. The principal or designee will make the final decision regarding placement of the student based on the following:

1. A copy of the student's high school transcript from the non-accredited school; and

2. Any standardized assessments or other relevant information.

D. A student entering from a non-accredited high school shall be provided with a written plan listing the courses and requirements the student must take in order to graduate;

1. The plan may be modified each semester or on an annual basis to reflect which courses have been completed as well as those remaining to be taken;

2. The student shall be enrolled as a full-time student until graduation requirements are met; and

3. Where possible, the courses into which the student will be scheduled shall include core subjects and vocational elective courses appropriate to the student's needs and interests.

4. Upon entry to the school:

a) A student must follow normal progress to graduation; or

b) Normal progress towards graduation allows for loss of one-half (0.5) elective credit per year without jeopardizing the possibility of graduation. In addition, the student will be considered to have attained senior status if, during the senior year, the student fails no more than one-half (0.5) credit in the required courses. In such cases, the student will be allowed to participate in the graduation ceremony but must make up the remaining half credit prior to receiving a diploma.

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E. All requests for entry to a high school or program from a non-accredited high school will be handled on a case-by-case basis.

F. Class standing and grade point average shall be computed on the basis of academic work completed after entry into an accredited institution.

XI. Demonstration of Clearly Identified Competencies – Credit For

A. Principals may grant credit for alternative demonstration of clearly identified district and state competencies deemed equivalent by OSPI. A plan for alternative demonstration (e.g. proficiency assessment) shall be approved by the superintendent or designee in advance of demonstration of competencies.

B. Students who have failed high school courses required for graduation but demonstrated proficiency of the course content and skills through meeting standard on the high school statewide assessment may recover course credit in lieu of receiving elective credit in the following manner:

Assessment	Previously Failed Course Eligible for Retrieval	Amount of Credit Received
High School Smarter Balanced ELA—Graduation Cut Score	English 9 or English 10	Up to 1.0
High School Smarter Balanced Math—Graduation Cut Score	Algebra or Geometry	Up to 1.0
High School Washington Comprehensive Assessment of Science—Cut Score of 3 or higher	Environmental Science, Biology, Chemistry, or Physics	Up to 1.0
or		
English ACT of 14+	English 9 or English 10	Up to 1.0
Math ACT of 16+	Algebra or Geometry	Up to 1.0
SAT of 410+ Evidence-Based Reading and Writing	English 9 or English 10	Up to 1.0
SAT of 430+ Math	Algebra or Geometry	Up to 1.0

C. Administrators may grant credit for alternative demonstration of clearly identified competencies.

1. In cases wherein teachers have identified a few standards or competencies as being missing, a Multi-Tiered System of Support (MTSS) team may recommend credit recovery through the higher level courses.

2. However, in cases wherein students are missing the majority of standards or competencies, a credit recovery course is recommended.

D. Conditions for Application of Competency Credit

1. Students must earn a C- or higher in the higher level course in order to earn lower level credit;

2. Students will earn a CR grade in the lower level recovered course;

3. The previous F grade will be zeroed out in the GPA calculation; and

4. Credit recovery courses DO NOT apply.

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The following courses are available for competency credit upon completion of higher level courses:

Courses available for Higher Course (HC) completion competency credit	Upon completion of:	Amount of credit received
English 9 HC	English 10	Up to 1.0
English 10 HC	English 11	Up to 1.0
English 11 HC	English 12	Up to 1.0
Algebra HC	Algebra 2	Up to 1.0
Geometry HC	MOWWM	Up to 1.0
Algebra 2 HC	Bridge to College Math	Up to 1.0
World Language 1	World Language 2	Up to 1.0
World Language 2	World Language 3	Up to 1.0
World Language 3	World Language 4	Up to 1.0
Environmental Science	1.0 Biology OR Chemistry OR Physics	Up to .5
Biology	1.0 Anatomy & Physiology, OR Zoology	Up to .5
Environmental Science, Biology, OR Chemistry	1.0 AP or IB Science Course	Up to 1.0
Environmental Science, Biology, OR Chemistry	1.0 AP or IB Science Course	Up to 1.0
Horticulture	Advanced Horticulture	Up to 1.0
Natural Resources	Advanced Natural Resources	Up to 1.0

E. A maximum of one (1) high school subject area credit will be awarded when a student passes a standardized high school general educational development certificate (GED) test in the subject matter. Additional credits may be awarded if the student has completed a course(s) of study to prepare for the test.

Assessment	**Initial Credit or Credit Retrieval**	**Amount of Credit Received**
GED Reasoning Through Language Arts	English/Literature (juniors and seniors)	Up to 1.0
GED Mathematical Reasoning Test	General Applied Mathematics	Up to 1.0
GED Science	Science General	Up to 1.0
	World Language	Up to 1.0
	Social Studies	Up to 1.0

XII. Credit Recovery Courses – Credit For

A. Credit recovery courses are designed to help student recover credit deficiencies and include but are not limited to summer school and evening courses;

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B. Students enrolled in the district's credit recovery program may have credits earned for high school completion; and

C. The student must have prior approval and be registered through the high school.

XIII. High School and Beyond Plan Requirement

A. Each student must have a high school and beyond plan to guide the student's high school experience and inform course taking that is aligned with the student's goals for education or training and career after high school.

B. High school and beyond plans must be initiated for students during the seventh (7th) or eighth (8th) grade to guide their high school experience and prepare them for postsecondary education or training and their careers. In preparation for initiating a high school and beyond plan, each student will first be administered a career interest and skills inventory that will help inform the student's ninth grade course taking and initial identification of education and career goals. Students must create their plans in cooperation with parents or guardians and school staff. School staff will work to update students' plans as necessary based on their changing interests, goals, and needs.

C. All high school and beyond plans will, at a minimum, include the following:

1. Identification of career goals and interests, aided by a skills and interest assessment;

2. Identification of secondary and postsecondary education and training goals;

3. An academic plan for course taking that:

a) Informs students about course options for satisfying state and local graduation requirements;

b) Satisfies state and local graduation requirements;

c) Aligns with the student's secondary goals, which can include education, training, and career preparation;

d) Identifies available advanced course sequences per the District's academic acceleration policy, that include dual credit courses or other programs and are aligned with the student's postsecondary goals;

e) Informs students about the potential impact of their course selections on postsecondary opportunities;

f) Identifies available career and technical education equivalency courses that can satisfy core subject area graduation requirements under RCW 28A.230.097;

g) If applicable, identifies career and technical education and work-based learning opportunities that can lead to technical college certifications and apprenticeships; and

h) If applicable, identifies opportunities for credit recovery and acceleration, including partial and mastery-based credit accrual to eliminate barriers for on-time grade level progression and gradation per RCW 28A.320.192;

4. Evidence that the student has received the following information on federal and state financial aid programs that help pay for the costs of a postsecondary program:

a) The college bound scholarship program established in chapter 28B.118 RCW, the Washington college grant created in RCW 28B.92.200, and other scholarship opportunities;

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b) The documentation necessary for completing state and federal financial aid applications; application timelines and submission deadlines; and importance of submitting applications early;

c) Information specific to students who are or have been the subject of a dependency proceeding pursuant to chapter 13.34 RCW, who are or are at risk of being homeless, and whose family member or legal guardian will be required to provide financial and tax information necessary to complete applications;

d) Opportunities to participate in advising days and seminars that assist students and, when necessary, their parents or legal guardians, with filling out financial aid applications in accordance with RCW 28A.300.815; and

e) A sample financial aid letter and a link to the financial aid calculator created in RCW 28B.77.280.

~~1. Identification of career goals, aided by a skills and interest assessment;~~

~~2. Identification of educational goals;~~

~~3. Identification of dual credit programs and the opportunities they create for students, including eligibility for automatic enrollment in advanced classes under RCW 28A.320.195, Career and Technical Education programs, Running Start programs, AP courses, International Baccalaureate programs, and college in the high school programs;~~

~~4. Information about the college bound scholarship program established in RCW 28B.118; and~~

~~5. A four (4) year plan for course completion that does the following:~~

~~a) Includes information about options for satisfying state and local graduation requirements;~~

~~b) Satisfies state and local graduation requirements;~~

~~c) Aligns with the student's secondary and postsecondary goals, with can include education, training, and career;~~

~~d) Identifies course sequences to inform academic acceleration, as described in RCW 28A.320.195, that include dual credit courses or programs and are aligned with the student's goals;~~

~~e) Includes information about the college bound scholarship program;~~

~~f) Evidence that the student has received the following information on federal and state financial aid programs that help pay for the costs of a postsecondary program; and~~

~~g) Documentation necessary for completing financial aid applications, including at minimum the free application for federal student aid (FAFSA) or the Washington application for state financial aid (WASFA) including information regarding:~~

~~i. Application timelines and submission deadlines;~~

~~ii. The importance of submitting applications early;~~

~~iii. Information specific to students who have been in foster care;~~

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~~iv. Information specific to students who are, or are at risk of being, homeless;~~

~~v. Information specific to students whose family member or guardians will be required to provide financial and tax information necessary to complete the application;~~

~~vi. Opportunities to participate in sessions that assist students and, when necessary, their family members or guardians, fill out financial aid applications;~~

~~vii. *Information provided on the Washington student achievement council website concerning each of the state and federal financial aid applications in this subsection; and*~~

~~viii. Information on college bound scholarship application and eligibility.~~

D. By the end of the twelfth (12th) grade, a current resume or activity log that provides a written compilation of the student's education, any work experience, and any community service and how the school district has recognized the community service.

E. Students who have not earned a score of level three (3) or four (4) on the middle school math state assessment must include in their plan taking math courses in ninth (9th) and tenth (10th) grade.

F. For students who have not earned a level three (3) or four (4) on their middle school English language arts exam or their middle school science exam, the district will inform them of supports and courses that will address their learning needs and be considered in their course-taking plans.

G. For students meeting graduation requirements, their high school and beyond plans should be used to guide their choices of what their third credit of high school math and science will be.

H. The high school and beyond plan will be updated periodically to address the following:

1. High school assessment results and junior year course-taking;

2. A student's changing interests, goals, and needs, including identifications of the graduation pathway options the student intends to complete to meet educational and career goals; and

3. Available interventions, academic supports, and courses that will enable the student to meet high school graduation requirements and graduation pathway requirements.

I. For students with an individualized education program (IEP), the high school and beyond plan must be developed and updated in alignment with their IEP, but in a similar manner and with similar school personnel as for all other students.

XIV. Academic Acceleration

A. The district will automatically enroll students who meet or exceed the state standard on the eighth grade or high school English language arts or mathematics statewide student assessment in the next most rigorous level of advanced courses or program offered by the high school.

B. The subject matter of courses or program in which students are automatically enrolled will be determined by the areas of the statewide assessment in which the student met state standards. Students who meet or exceed state standard on the English language arts statewide student assessment are eligible for enrollment in English, social studies, humanities, and other related subjects. Students who meet or exceed the state standard on the mathematics statewide student assessment are eligible for enrollment in advanced mathematics courses.

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C. Beginning in 2021-2022 school year, students who meet or exceed the state standard on the Washington comprehensive assessment of science are eligible for enrollment in advanced courses in science.

D. Students who successfully complete the advanced courses will then be enrolled in the next most rigorous level of advanced courses, with the ultimate goal being the student's automatic enrollment in dual credit courses.

E. The district will notify students and parents/guardians regarding the academic acceleration policy and the advanced courses available to students. The district will provide the parent/guardian with an opportunity for the student to opt out of participation in the academic acceleration process and enroll in an alternative course or program that aligns with the student's high school and beyond plan goals.

XV. Graduation Pathway Options

A student may choose to pursue one or more of the pathway options described below to demonstrate career and college readiness as long as the option chosen is in alignment with the student's high school and beyond plan.

At least annually, the district will examine data on student groups participating in and completing each graduation pathway option that the district offers. At a minimum, the data on graduation pathway participation and completion will be disaggregated by the student groups described in RCW 28A.300.042(1) and (3), and by:

- Gender;
- Students who are the subject of a dependency proceeding pursuant to chapter 13.34 RCW;
- Students who are experiencing homelessness as defined in RCW 28A.300.542(4); and
- Multilingual/English learners.

If the results of the analysis required under the statute show disproportionate participation and completion rates by student groups, then the school district will identify reasons for the observed disproportionality and implement strategies as appropriate to ensure the graduation pathway options are equitably available to all students in the school district.

A. Statewide High School Assessment

A student may demonstrate career and college readiness by meeting or exceeding the graduation standard established by the State Board of Education on the statewide high school assessments in English language arts and mathematics.

B. Dual Credit Courses

1. A student may demonstrate career and college readiness by completing and qualifying for college credit in dual credit courses.

2. "Dual credit course" means a course in which a student is eligible for both high school credit and college credit at the level of 100 or higher upon successfully completing the course. Examples of such courses include Running Start, college in the high school courses, and career and technical education dual credit courses.

3. Before course scheduling or course registration for the next school term, the district will provide information to students in grades nine through twelve and their parents about each available dual credit program and any financial assistance available to reduce dual credit course and exam costs for students and their families. The information will be provided by email and other communication methods. To the extent feasible, the information will we translated into the primary language of each parent or legal guardian.

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C. High School Transition Courses

A student may demonstrate career and college readiness by earning high school credit in a high school transition course in English language arts and mathematics. A high school transition course is a course offered in high school where successful completion by a high school student ensures the student college-level placement at participating institutions of higher education as defined in RCW 28B.10.016. High school transition courses must satisfy core or elective credit graduation requirements established by the State Board of Education.

D. AP Courses and International Baccalaureate Programs

A student may demonstrate career and college readiness by doing either 1 or 2 below:

1. Earning high school credit with a grade of C+ or higher in each term in the following Advanced Placement, or International Baccalaureate, courses in English language arts and mathematics.

   a) English language arts courses:

      i. AP courses: English literature and composition, macroeconomics, microeconomics, psychology, United States history, world history, United States government and politics, or comparative government and politics; or

      ii. International Baccalaureate courses: individuals and societies courses or English language and literature courses.

   b) Mathematics courses:

      i. AP courses: statistics, computer science A, computer science principles, or calculus; or

      ii. International Baccalaureate courses: any International Baccalaureate mathematics course.

2. Achieving the following scores on the following exams:

   a) Score a three (3) or higher on AP exams in one of the English language arts and one of the mathematics courses identified above; or

   b) Score a four (4) or higher on International Baccalaureate exams in one (1) of the English language arts and one (1) of the mathematics courses identified above.

3. A student may demonstrate career and college readiness by earning high school credit, with a C+ grade, or receiving a three (3) or higher on the AP exam, or equivalent, in AP or, International Baccalaureate, courses in English language arts and mathematics; or receiving a four (4) or higher on international baccalaureate exams.

4. For English language arts, successfully completing any of the following courses meets the standard: AP microeconomics, AP psychology, AP United States history, AP world history, AP United States government and politics, AP comparative government and politics, and any of the International Baccalaureate individuals and societies courses.

5. For mathematics, successfully completing any of the following courses meets the standard: AP statistics, AP computer science, AP computer science principals, AP calculus, and any of the International Baccalaureate mathematics courses.

E. SAT or ACT Scores

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A student may demonstrate career and college readiness by meeting or exceeding the scores established by the State Board of Education for the mathematics portion and the reading, English, or writing portion of the SAT or ACT.

F. Performance-based Learning

A student may demonstrate career and college readiness by completing a performance-based learning experience that demonstrates knowledge and skills in a real-world context and provides evidence of meeting or exceeding the learning standards in English language arts and mathematics. A performance-based learning experience may take a variety of forms, such as a project, practicum, work-related experience, community service, or cultural activity, that result in a product that can be evaluated for evidence of the learning standards, such as a performance, presentation, portfolio, report, film, or exhibit. Proposals for performance-based learning experiences must be approved in advance by the principal or designee. The performance-based learning experience must conform to the graduation proficiency targets and associated rubrics established by the state board of education.

F. Combination of Options

A student may demonstrate career and college readiness by meeting any combination of at least one English language arts option and at least one mathematics option described above.

G. Armed Services Vocational Aptitude Battery (ASVAB)

A student may demonstrate career and college readiness by meeting standard in the armed services vocational aptitude battery by scoring at least the minimum established by the military for eligibility to serve in a branch of the armed services at the time the student takes the assessment.

H. Career and Technical Education (CTE) Courses

A student may demonstrate career and college readiness by completing a sequence of high school CTE courses in which at least two (2) credits are earned in the same CTE program area. The sequence must either include an opportunity for the student to earn both high school and college-level credit (i.e., dual credit), lead to an industry recognized credential, or completion of a Core Plus program.

XVI. Substitution Credit

A. A substitution credit is defined as a course in one subject area that satisfies a graduation requirement in a different subject area. Substitution credit may be granted by the building principal for some courses and credit may apply toward graduation requirements.

B. Students wishing to use a course for substitution crediting must complete the appropriate application and must receive approval of the building principal before such credit shall be counted.

XVII. International Baccalaureate (IB) Programme Diploma

A. A student who fulfills the requirements for an International Baccalaureate Programme diploma is considered to have satisfied at least one (1) of the graduation pathway options and the minimum state requirements for graduation from high school. To receive an International Baccalaureate diploma, a student must complete and pass all required diploma program courses, as scored at the local level; pass all internal assessments, as scored at the local level; successfully complete all required projects and products, as scored at the local level; and complete the final exams administered by the International Baccalaureate organization in each of the required subjects.

B. A student and parent or guardian will be required to sign the “International Baccalaureate Programme Option Form” indicating that the student and family understand that the waiver from state and district graduation requirements only applies for students who fulfill the requirements of the IB Programme; should a student fail to meet the requirements, or if a student leaves the program prior to completion, the student will be required to fulfill state and Vancouver Public Schools graduation requirements.

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XVIII. Students with an Individualized Education Program (IEP)

A A student's IEP team must determine whether the graduation pathway options described above are appropriate for the student. ~~If the IEP team determines that those options are not appropriate, then the student must earn a certificate of individual achievement to graduate. A certificate of individual achievement may be earned by using multiple measures to demonstrate skills and abilities commensurate with the student's IEP.~~

B. The following process will be followed to help a student with an IEP graduate:

1. By the age of fourteen (14), the student will participate with the IEP team (including a special education teacher, general education teacher, parents, student, and other school personnel and agency representatives who will assist the student in achieving the goals of the IEP) in a discussion of transition service needs that focuses on the student's course of study; and

2. As an outcome of the discussion, the IEP will include appropriate graduation requirements based on the student's individual needs and abilities consistent with the student's transition plan. Modifications to the district's standard graduation requirements may include:

   a) Attainable alternate classwork or individualized activities substituted for standard requirements;

   b) A statement of waiver for any waived standard graduation requirements; or

   c) An extension of time for the student to remain in school to complete graduation requirements. The student may remain in school up to and including the school year in which the student reaches twenty-one (21) years of age.

3. The student will, in cooperation with a parent or guardian and the IEP team, determine:

   a) The projected date by which all graduation requirements will be met; and

   b) The projected date and conditions under which the student will participate in the graduation ceremony.

4. The student will have an IEP that incorporates all issues and decisions from the above procedures. Any decision that modifies the district's standard graduation requirements will be made through the IEP process. Annually or as needed, the IEP will be reviewed or revised to accommodate the student's progress and development.

XIX. Waiver of Graduation Requirements

A. All state requirements must be satisfied except that the study of the United States Constitution and Washington State Constitution may be fulfilled through an alternative learning experience approved by the local school principal. Additionally, after completion of the tenth (10th) grade and prior to the commencement of the eleventh (11th) grade, students may have the Washington state history requirement waived by their principal if without such a waiver they will not be able to graduate with their class. A maximum of two (2) credits can by waived locally for students who have attempted twenty-four (24) credits.

B. The following procedure will be followed in graduation waiver requests:

1. The principal is responsible for evaluating educational experiences of individual students and recommending graduation to the superintendent when a student has not met requirements.

2. An individual student may be granted an exemption from any requirement in this policy if such requirement impedes the progress toward graduation provided there is a direct relationship between the failure to meet the requirement and the student's ability. When a twelfth (12th)

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grade student transfers from another high school, the student may be permitted to graduate with a lesser number of credits provided that minimum state course and credit requirements are satisfied and the student successfully passes a full schedule of classes during the twelfth (12th) year of school.

3. The principal determines whether to waive graduation requirements using the following procedure:

   a) The waiver option may not be initiated until the first day of the second semester of the student's senior year (except in alternative learning school sites where the process may be initiated during the student's junior year). The student must have attempted to earn required credits for graduation. Waivers will not be granted for the purpose of early release or late arrivals. The student and parents must be apprised of possible post-secondary limitations of a diploma earned with minimum requirements;

   b) The request will be initiated by the parent or eligible student. The request should include the rationale for the requested waiver. Appropriate circumstances must be considered on an individual basis and may include significant personal problems, financial circumstances, or health issues. Additional circumstances may include the age of a transfer student entering the system, or the inability of the school of attendance to adjust its program for the individual student in order to enable progress toward graduation with reasonable timeliness and success;

   c) The principal will investigate the request for waiver of graduation requirements;

   d) The principal will make a determination in writing based upon appropriate data and upon conclusions of the investigation;

   e) The waiver may not be granted prior to June of the student's senior year.

   f) The principal will develop appropriate record keeping procedures for storage of all pertinent data relating to each waiver request; and

   g) The principal or designee will notify the parent or eligible student that they may appeal the principal's decision regarding a waiver request in writing to the superintendent no later than thirty (30) days prior to the anticipated graduation date.

XX. Seal of Biliteracy

To be awarded the Washington Seal of Biliteracy, graduating high school students must meet the following criteria:

A. Demonstrate proficiency in English by:

   1. Meeting statewide minimum graduation requirements in English as established by the Washington State Board of Education; and

   2. Meeting state standards on the reading and writing or English language arts assessment.

B. Demonstrate proficiency in one or more world language. For purposes of this section, "world language" is defined as a language other than English, including American Sign Language, Latin, and Native American or other indigenous languages or dialects. Proficiency may be demonstrated by:

   1. Passing a foreign language Advanced Placement exam with a score of three (3) or higher;

   2. Passing an International Baccalaureate exam with a score of four (4) or higher;

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3. Demonstrating intermediate-mid level or higher proficiency on the American Council on Teaching of Foreign Languages (ACTFL) guidelines using assessments approved by OSPI for competency-based credits; and demonstrating proficiency using reading assessments approved by OSPI (when developed);

4. Qualifying for four (4) competency-based credits by demonstrating proficiency in speaking, writing, and reading the world language at intermediate-mid level or higher on the ACTFL proficiency guidelines; or

5. Demonstrating proficiency in speaking, writing, and reading the world language through other national or international assessments approved by OSPI.

XXI. Graduation Ceremonies

A. If students fulfill graduation requirements by the end of the last term of their senior year, they may participate in graduation ceremonies. Each student will be awarded a diploma after satisfactorily completing local and state requirements. Upon request, each graduating student will receive a final transcript. Each student will be notified of this opportunity at least one (1) month prior to the close of the school term, provided the following conditions exist:

1. The student is on track to graduate based on high school and beyond plan, pathway completion and course credits at the beginning of the fourth (4th) quarter of the senior year; or

2. The student has completed a high school and beyond plan, graduation pathway and is no more than one (1) credit deficient and, if appropriate, has an approved two (2) credit waiver by the end of the senior year;

3. The student has made arrangements to earn the needed credit before the beginning of the next school year; and

4. The student and a parent or adult advocate have met with the principal and offered an explanation of circumstances that have prevented the student from meeting all requirements by the end of the current school year. After consideration of the explanation, it will be left to the principal's discretion as to whether or not the student will be allowed to participate in the commencement ceremonies.

B. Any student receiving services under an IEP who will continue to receive such services between the ages of eighteen (18) and twenty-one (21) will be allowed to participate in the graduation ceremonies and activities after four (4) years of high school attendance with the student's age-peers and receive a certificate of attendance.

C. Graduation ceremonies will be conducted in the following manner:

1. Each participating student must participate in the graduation ceremony rehearsal, unless excused by the principal. Each student who participates will purchase or rent the proper cap and gown as designated by the school administration and the class advisor and officers;

2. Caps and gowns will be worn in the proper manner, as designated by the school administration and class advisor;

3. Students may wear attire that is:

a) Recognized as a symbol of a specific culture's recognition of significant achievement; or

b) Required as religious dress.

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4. Students who participate will use good taste, consistent with Policy 3224, Student Dress, in their choice of accessories for their attire;

5. Each student who participates will cooperate with the class advisor and commencement coordinator and participate in all parts of the graduation ceremonies;

6. Students who participate will be expected to use good taste in their choice of accessories. Accessories that draw attention away from the purpose of the ceremony or are disruptive will not be permitted;

7. In the event of a violation of school rules, a student is entitled to due process as set forth in district Policy and Procedure 3241,Student Discipline;

8. Failure to comply with the above requirements or violation of any school rules may forfeit a student's privilege of participation in the commencement ceremonies;

9. In the event a member of the graduating class dies prior to the start of their senior year or during their twelfth (12th) grade year, the high school principal, at the request of the parent of the deceased student, may issue a posthumous high school diploma for the deceased student if the student:

    a. Was enrolled in high school at the time of death;
    b. Was on-track for graduation before the time of death; and

    c. Died after matriculating into high school.

10. A high school diploma issued posthumously must bear the inscription "honoris causa" and will only be issued at the graduation date of the class in which the student was enrolled.

XXII. Recognition of the Top 5% of Senior Class and Selection of Commencement Speaker

A. Students in the top five percent (5%) of the senior class ranking by grade point average (GPA) shall be recognized in the commencement ceremony. Student grade point averages are calculated in accordance with Section II A (8) of Policy and Procedure 2420, Homework, Grading and Progress Reports and students are ranked by GPA for class scholastic rank at the end of the graduating class' seventh (7th) semester. There is no designated valedictorian or salutatorian.

B. At least one student commencement speaker shall be selected from the top five percent (5%) of the senior class scholastic ranking. The selected student speaker(s) will work with the building principal or designee to write and deliver an approved graduation speech.

XXIII. Early Graduation

Requests for early graduation will be directed in writing to the high school principal or designee:

A. A review board empowered to hear requests and recommend exceptions to graduation requirements for the purpose of early graduation shall be formulated at the discretion of the building principal.

B. Composition of the review board - recommended: membership should include the principal or designee, an assistant principal, the student's counselor and two (2) classroom teachers.

C. In hearing a request for exceptions to graduation requirements (for the purpose of early graduation) the review board may require that both the student and parent(s) must be in attendance to present the request.

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D. Any request for a student to be permitted to shorten the period of time for completion of the secondary school requirements for graduation must be in accordance with the provisos included within Vancouver Public Schools policy pertaining to high school graduation. In no case will credit recovery program, competency assessments, or continuation high school courses be considered to satisfy this requirement.

E. The review board will respond to the student/parent request, in writing, according to policy provision: no less than two (2) semesters in advance of the proposed graduation, unless approved by the principal due to extreme extenuating circumstances.

XXIV. Withholding a Diploma

A. The district may withhold a student's diploma based on the student's loss of or damage to property in accordance with Policy 3250, Student Fees, Fines and Charges.

B. In the event that the district has imposed other forms of corrective action for violations of school rules, the district may deny the student's participation in graduation ceremonies. In such instances, the district will grant the diploma.

XXV. Certificate of General Educational Development (GED)

A. A person who is between the ages of sixteen (16) and nineteen (19) who has not graduated from high school shall be eligible to take the GED test in official GED testing centers provided these persons:

1. Are residents of the State of Washington;

2. Are adjudged by the principal or designee to have a substantial and warranted reason for leaving the regular high school education program. The term "substantial and warranted reason for leaving the regular high school education program" means one or more of the following:

a) Personal problems which seriously impair the student's ability to make reasonable progress toward high school graduation;

b) A financial crisis which directly affects the student and necessitates the student's employment during school hours;

c) The inability or failure of the school of attendance to adjust its program for the individual or otherwise make arrangements for enrollment in an educational program in a manner which enables the student to advance toward graduation with reasonable progress and success; or

d) A determination by the designated employee that it is in the "best interest" of the student to drop the regular high school program for one of the following purposes:

i) Enter a post-secondary institution;

ii) Enter the military; or

iii) Engage in employment.

B. Provided, that no person under eighteen (18) years of age (i.e., minor), shall be adjudged to have a substantial and warranted reason for leaving school unless the minor's parent(s), if available, agrees that dropping school is in the best interest of the minor.

DRAFT

APPROVED:

_____ _____

Jeff Snell, Superintendent
Vancouver Public Schools

Date

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Procedure – Transportation

I. Route Guidelines

Routes should be established so as to:

A. Avoid, whenever possible, left-hand turns when entering or exiting high speed roadways;

B. Avoid students crossing a four-lane road;

C. Minimize stopping on multi-lane roads, unless the bus can get completely off the road;

D. Avoid, if possible, crossing railroad tracks;

E. Provide transportation to students who live within the distance from school that is specified for state funding or who would have to walk on a roadway declared hazardous by the board;

F. Deliver students to their school no more than thirty (30) minutes before school starts. NOTE: It is desired that students arrive at school within twenty-five (25) minutes of starting time;

G. Pick up students at school within five (5) minutes of dismissal, unless a delay is caused by a double run, or another guideline. In that case, students should be picked up within no more than thirty (30) minutes of dismissal;

H. Allow for a minimum "deadhead" time to, from, and between runs and no more than fifteen (15) minutes standby time between runs, provided that, unless otherwise approved by the superintendent, all waiting time will be on district property;

I. Avoid travel on dead end roads, unless it is necessary within these guidelines and there is an ample, safe area in which a bus can turn around, without backing;

J. Fill each bus to rated capacity, provided that it is economically feasible and within the other routing guidelines;

K. Have minimum overlap or duplication in bus routes serving the same school; and

L. Avoid travel on private roads, drives or property, on unimproved roads (not surfaced to county/city standards), or on roads which are in such bad condition as to cause damage to a bus.

II. Bus Stop Guidelines

Bus stops will be established which:

A. Are located so students do not have to walk more than one (1) mile to and from the bus. Bus stops may be more frequent, so students can avoid walking on a road that has been declared hazardous for walking;

B. Are located where students can stand a safe distance from the road;

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C. Allow, where possible, the bus to get completely off of the road;

D. Provide at least five hundred (500) feet on thirty-five (35) mile-per-hour roadways, and eight hundred (800) feet on fifty (50) mile-per-hour roadways of unobstructed visibility, both ways;

E. Require as few students as possible to cross roadways with no students crossing multiple lane roads and highways; and

F. Are located where no damage is likely to occur to private property and where the number of students waiting does not create unsafe conditions and/or situations.

III. **School Bus Trespass**

A. It is a gross misdemeanor for individuals to enter or remain unlawfully on a school bus, do any act that creates a substantial risk of harm to passengers or the driver, and cause a substantial interruption or impairment of services rendered by the bus. This doesn't apply to enrolled students, law enforcement officers or other authorized personnel engaged in the performance of their official duties, individuals with written consent from the district allowing them to enter or remain on the school bus, and emergency situations where entering the bus is necessary to protect the safety or wellbeing of students or others.

B. The district will implement educational programs and awareness campaigns to inform students, parents, and the community about the importance of maintaining safety and security on school buses. These initiatives will highlight the potential criminal consequences of school bus trespassing.

C. If the district receives the funds to do so, it will affix placards warning of the consequences of school bus trespassing to the outside of all its school buses so they are easily visible.

III. At the request of an eligible student, the district may allow the student to transport his or her infant on a school bus or other student transportation vehicle provided by the district. The infant must be transported in a rear-facing child restraint system as defined in the federal motor vehicle safety standards found in 49 C.F.R. § 572.213. If the district denies the student's request to transport his or her infant by school bus, the district must authorize other arrangements for individual transportation in accordance with RCW 28A.160.030. For purposes of this paragraph, "eligible student" means any student served by the transportation program of the district or compensated for individual transportation arrangements authorized by RCW 28A.160.030 whose route stop is outside the walk area for a student's school, except if the student to be transported is disabled under RCW 28A.155.020 and is either not ambulatory or not capable of protecting his or her own welfare while traveling to or from the school or agency where special education services are provided, in which case no mileage distance restriction applies.

APPROVED:

_____ _____

Jeff Snell, ~~Kathy Everidge, Interim~~ Date
Superintendent
Vancouver Public Schools

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REPEAL Sex Discrimination and Sex-Based Harassment of Students Prohibited – Grievance Procedure

~~This procedure sets forth the district's process for receiving, investigating, and resolving reports or complaints of sex discrimination. It is designed to provide for a prompt, thorough, and equitable investigation of complaints and to take appropriate steps to resolve such situations. If sex discrimination is found to have occurred, the district will also take immediate action to eliminate the discrimination, prevent its reoccurrence, and remedy its effects.~~

~~For questions about this procedure, contact the district's Title IX coordinator, who can be reached at:~~

~~Jeff Fish~~
~~Executive Director, Human Resources~~
~~Vancouver School District~~
~~2901 Falk Rd.~~
~~Vancouver, WA 98661~~
~~360-313-1000~~
~~Jeff.fish@vansd.org~~

~~I. General Definitions~~

~~A. "Complainant" means a student, employee, or other person who was participating or attempting to participate in a district education program or activity who is alleged to have been subjected to sex discrimination.~~

~~B. "Complaint" means an oral or written request to the district that can be objectively understood as a request to investigate and determine whether alleged sex discrimination occurred.~~

~~C. "Complaint Requestor" means a person who files a complaint on behalf of another student, employee, or other person who is alleged to have been subjected to sex discrimination.~~

~~D. "Party" or "Parties" means a complainant or respondent, and includes the parent(s)/guardian(s) of any minor student.~~

~~E. "Prohibited Conduct" means sex discrimination and sex-based harassment. Specific prohibited conduct is defined in Section VII below.~~

~~F. "Remedies" means appropriate measures provided to restore or preserve a complainant's equal access to the district's education program or activity.~~

~~G. "Respondent" means a person who is alleged to have violated the district's prohibition of sex discrimination and can be a student, employee, or third party.~~

~~H. "Student with a disability" means a student who is an individual with a disability as defined in Section 504 of the Rehabilitation Act of 1973 (Section 504) or as defined in the Individuals with Disabilities Education Act (IDEA).~~

~~I. "Written notice" means written or electronic notice in a language the party can understand, which may require language assistance for parties with limited English proficiency in accordance with Title VI of the Civil Rights Act.~~

~~II. Responding to Notice or Report of Sex Discrimination~~

~~A. Upon receipt of notice, reports, or knowledge of alleged sex discrimination, including sex-based harassment, the district will take steps to address the information that is reported to the extent it is feasible to do so while maintaining the confidentiality of the affected student or employee.~~

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B. The district is on notice and will take action when any employee knows, or in the exercise of reasonable care should know, about possible sex discrimination. This includes verbal or written reports made to any employee, including anonymous complaints.

C. Upon notice of possible sex discrimination, employees will notify the Title IX coordinator. Employees will also inform an appropriate supervisor or professional staff member when they receive complaints of sex-based harassment, especially when the complaint is beyond their training to resolve or alleges serious misconduct.

D. The district will make every effort to protect parties' privacy. However, in the event of an alleged sexual assault of a minor, the school principal will immediately inform law enforcement consistent with mandatory reporting requirements at RCW Chapter 26.44.

E. In the event of an alleged sexual assault, the school principal will also immediately notify the student, parent or guardian, or employee of their right to file a criminal complaint with law enforcement and a sex-based harassment complaint with the district. With the consent of the student or employee, or when there is a legal requirement to do so, the principal may also help the student or employee contact law enforcement.

III. Supportive Measures, Notice of Applicable Policy and Procedure, and Other Considerations

A. Once the Title IX coordinator has been notified of possible sex discrimination, the Title IX coordinator or designee will promptly contact the affected student or employee to:

1. Discuss the availability of supportive measures and consider their wishes with respect to supportive measures;

2. Explain the district's procedure and resolution options, including the informal resolution process if appropriate; and

3. Provide a copy of the applicable district policy and procedure, including the district's grievance procedure.

B. Supportive Measures

1. Upon notice of allegations of sex discrimination, an administrator will offer and coordinate supportive measures as appropriate for the complainant and respondent.

2. At the time that supportive measures are offered, if a complaint has not been filed, the district will provide written notice that the complainant may file a complaint at any time. The administrator will work with a party to ensure that their wishes are considered with respect to any supportive measures.

3. If a complainant does not want to file a complaint or engage in informal resolution options, a reported concern may be resolved by offering supportive measures. The administrator will document any supportive measures and provide that information to the Title IX coordinator.

C. Providing Supportive Measures

1. Supportive measures are designed to protect the safety of the parties or the district's educational environment. They also provide support during the informal resolution process and grievance process. They are designed to restore or preserve access to the district's education program or activity. They are offered without fee or charge to the parties, and must not unreasonably burden either party.

2. Supportive measures cannot be imposed against a respondent for punitive or disciplinary reasons.

3. Supportive measures are available to both parties and may vary depending on what is reasonably available, but may include:

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a) A request that an administrator meet with the respondent (with or without the complainant) to discuss the concerning behavior, school policies, and expectations. The conversation must be non-disciplinary, non-punitive, and the respondent cannot be required to attend nor are they required to provide any information if they attend. If it takes place, the conversation will be documented;

b) An opportunity for a complainant to meet with an administrator and the alleged harasser to explain that the conduct is unwelcome, offensive, or inappropriate. Such a meeting is voluntary and may be in writing or face-to-face;

c) A general public statement from an administrator about the district's sex discrimination and sex-based harassment policy, without identifying the parties;

d) Developing a safety plan;

e) Mutual restrictions on contact between the parties;

f) Increased security and monitoring of certain areas of the campus or school building;

g) Providing employee and/or student training;

h) Remote or alternative learning environments for students, or leaves of absence for employees;

i) Access to the school counselor for students, or a referral to the Employee Assistance Program for employees;

j) Modifications of work or class schedules;

k) Extensions of deadlines; and

l) Training and education programs related to sex discrimination or sex-based harassment.

4. If either party is a student with a disability, the Title IX coordinator may consult, as appropriate, with the special services department about how to comply with Section 504 or the IDEA in the implementation of supportive measures.

D. Privacy and Supportive Measures

The district will disclose supportive measures only to the student(s) or employee(s) to whom they apply and other people who need information to provide the supportive measures. The district will not disclose more information than necessary about the supportive measures. For example, the district may need to tell specific staff or the other party of a supportive measure to implement or document it, but the district may not need to disclose why the supportive measure is being provided.

1. The district may also disclose information about supportive measures:

a) If a person with the legal right to consent to the disclosure provides written consent.

b) When the information is disclosed to a parent, guardian, or other authorized legal representative.

c) To comply with state or federal grant awards or other funding agreements.

d) When required by law, including the Family Educational Rights and Privacy Act (FERPA), and those laws do not conflict with Title IX.

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2. The district will not disclose information about supportive measures when prohibited by state law.

3. Additionally, as set forth in Policy and Procedure 3211 (Gender Inclusive Schools), information about a student's gender identity, legal name, or assigned sex at birth may constitute confidential information. To protect the safety and well-being of the student, school employees should not disclose a student's transgender or gender expansive status to others, including other school personnel, other students, or the parents of other students, unless the school is (1) legally required to do so or (2) the student has authorized such disclosure.

E. Modification or Termination of Supportive Measures

1. A party may request the modification or termination of a supportive measure or challenge the denial of a requested supportive measure. Any such request must be submitted to the district's Title IX coordinator.

2. As appropriate, the district may modify or terminate supportive measures at the conclusion of an informal resolution or investigation process, or the district may continue them beyond that point.

F. Title IX Coordinator Determinations and Explanation of Applicable Policies

3. Who Can File A Complaint

a) For complaints of sex-based harassment, the following people may file a complaint under this procedure:

i) A complainant (a student, employee, or other person who was participating or attempting to participate in a district education program or activity who is alleged to have been subjected to sex discrimination);

ii) A parent, guardian, or other authorized legal representative of the complainant; or

iii) The Title IX coordinator.

b) For other forms of sex discrimination that are not sex-based harassment, the following people may file a complaint under this procedure:

i) A complainant;

ii) A parent, guardian, or other authorized legal representative of the complainant;

iii) The Title IX coordinator;

iv) Any student or employee; or

v) Any other person participating or attempting to participate in a district education program or activity at the time of the alleged sex discrimination.

c) Individuals who do not fit the definitions above may file complaints under other district policies, including but not limited to Policy 3210 (Nondiscrimination) and Policy 5010 (Nondiscrimination and Affirmative Action).

d) If a person who does not fit the definitions above attempts to file a complaint of sex-based harassment, the Title IX coordinator or designee will inform the person, in writing, that the district cannot proceed with an investigation. The notice will also state that the district will treat the complaint as a report of sex-based harassment and take steps, as necessary, to address the information to the extent it is feasible to do so while maintaining the confidentiality of the affected student or district employee.

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~~G. Determining What Procedure Applies~~

~~1. The Title IX coordinator or designee will determine what procedure applies.~~

~~2. If the sex discrimination is alleged to have occurred prior to August 1, 2024, and is not ongoing, the procedure in effect at the time of the alleged conduct will apply.~~

~~3. If the alleged sex-based discrimination is alleged to have occurred on or after August 1, 2024, or is ongoing, this procedure will apply.~~

~~4. If more than one discriminatory event is alleged, or other types of discrimination are also alleged, the district may apply different policies to each event.~~

~~H. Other Considerations~~

~~1. Students with Disabilities~~

~~If either party is a student with a disability, the Title IX coordinator or designee will consult with the special services department to determine how to comply with Section 504 or IDEA requirements throughout this grievance process.~~

~~2. Discipline Prohibited Until Determination~~

~~a) A respondent who is alleged to have violated the district's prohibition of sex discrimination is presumed not responsible for the alleged conduct until a determination regarding responsibility is made at the conclusion of the grievance process.~~

~~b) The district may not impose disciplinary sanctions or other actions that are not supportive measures against the respondent unless the district determines that the respondent was responsible for the sex discrimination at the conclusion of the grievance process.~~

~~I. Emergency Removals for Alleged Sex-Based Harassment under Title IX~~

~~The district may remove a student respondent from school on an emergency basis under the district's student discipline policy and procedure, provided the district:~~

~~1. Undertakes an individualized safety and risk analysis;~~

~~2. Determines that an imminent and serious threat to the health or safety of the complainant or any students, employees, or other persons justifies emergency removal; and~~

~~3. Provides the respondent with notice and an opportunity to challenge the emergency removal.~~

~~J. These emergency removal procedures do not modify any rights of a student with a disability under the IDEA, Section 504, or the Americans with Disabilities Act.~~

~~K. The district may place a respondent employee on administrative leave during the grievance process. Such leave does not modify any rights under Section 504 or the Americans with Disabilities Act. The district will follow the terms of any applicable collective bargaining agreement.~~

~~**IV. Informal Resolution Procedure**~~

~~A. The parties may elect to participate in an informal resolution process with a district designee trained on impartiality and this informal resolution process. The district cannot require the parties to participate in an informal resolution process or require that any person waive the right to the formal resolution process as a condition of enrollment, employment, or the enjoyment of any other right.~~

REPEAL

~~B. The purpose of informal resolution is to provide the parties an opportunity to resolve the allegations and reach a mutually acceptable resolution without an investigation and determination of responsibility.~~

~~C. It is not necessary to pursue informal resolution before filing a complaint and requesting an investigation.~~

~~D. Either party may request informal resolution at any time, including after a complaint has been filed but before a complaint determination is issued.~~

~~E. The informal resolution process is at the discretion of the district's Title IX coordinator or designee. However, informal resolution is not permitted for resolving allegations that an employee engaged in sex-based harassment of a student.~~

~~F. The informal resolution process requires the parties' voluntary, written consent. Before beginning the informal resolution process, the parties must receive written notice that explains:~~

~~1. The allegations;~~

~~2. The requirements for the process;~~

~~3. The right to withdraw from the informal process and to proceed with the grievance process any time prior to reaching agreement;~~

~~4. If a resolution agreement is reached, the parties are prevented from proceeding with the grievance process;~~

~~5. Potential terms that can be requested or offered include but are not limited to restrictions on contact or participation in programs, activities, and attendance at specific events;~~

~~6. Notice that any agreement is only binding on the parties; and~~

~~7. That the parties may agree to keep any statements, notes, or evidence from the informal resolution process confidential, except that certain information may be disclosed as necessary or as required by law, including any written resolution agreement signed by the parties, any threat of violence or plans to commit or conceal a crime, and any acts subject to mandatory reporting.~~

~~G. Respondent's Acceptance of Responsibility~~

~~1. The respondent may accept responsibility for any or all of the allegations at any point during the involuntary resolution process. If the respondent indicates an intent to accept responsibility, the ongoing investigation process will be paused and the Title IX coordinator or designee will determine whether informal resolution is an option.~~

~~2. If informal resolution is an option, an informal resolution facilitator will determine whether all parties and the district are able to agree, in writing, on responsibility, restrictions, sanctions, restorative measures, and remedies. An informal resolution is not subject to appeal once all parties indicate their written agreement to all resolution terms.~~

~~3. When a signed, written resolution agreement is reached, the superintendent will accept a finding that the respondent is in violation of the district's policy and will accept the terms of the resolution agreement. The appropriate sanctions or responsive actions will be promptly implemented by the Title IX coordinator or designee and appropriate administrators to effectively stop the discrimination or harassment, prevent its recurrence, and remedy its effects on the complainant and, as applicable, the school community.~~

~~4. When the parties or the district do not agree on all resolution terms, the parties can attempt informal resolution or proceed with a complaint.~~

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~~H. Informal Resolution Between the Parties~~

~~1. The purpose of informal resolution is to provide the parties an opportunity to reach a mutually acceptable resolution without an agreed upon finding of responsibility or an investigation and determination of responsibility.~~

~~2. The parties have forty-five (45) calendar days to engage in the informal resolution process, unless there is a good cause for extension.~~

~~3. If a complaint was filed, the Title IX coordinator or designee has discretion to determine if an investigation will be paused, limited, or continued during the informal resolution process.~~

~~4. If the parties agree to a resolution, they may not initiate or resume a complaint under the grievance procedures concerning the same allegations.~~

~~5. If either party withdraws from the informal resolution process or the process has not concluded within forty-five (45) calendar days, the informal resolution facilitator or Title IX coordinator will end the informal resolution process.~~

~~6. When the informal resolution process ends without a resolution agreement between the parties:~~

~~a) If no complaint was filed, the Title IX coordinator or designee will provide written notice to the parties and remind the complainant of the right to file a complaint; and~~

~~b) If a complaint was filed, the Title IX coordinator or designee will provide written notice that the complaint, in whole or part, will be investigated.~~

~~I. Mediation with the District for Complaints of General Discrimination~~

~~1. If the complaint concerns a policy or practice of the district, the district may, at its own expense, offer mediation. The complainant and the district may agree to extend the complaint process deadlines to pursue mediation.~~

~~2. The purpose of mediation is to provide the complainant and the district an opportunity to resolve disputes and reach a mutually acceptable agreement through the use of an impartial mediator. Mediation must be voluntary. Either party may terminate mediation at any time during the mediation process. Mediation may not be used to deny or delay a complainant's right to utilize the complaint procedures.~~

~~3. Mediation will be conducted by a qualified and impartial mediator who may not:~~

~~a) Be an employee of any school district; or~~

~~b) Have a personal or professional conflict of interest.~~

~~4. If the parties reach an agreement through mediation, they may sign a binding agreement that outlines the resolution and states that all statements, notes, or evidence from mediation will remain confidential and may not be used as evidence in any subsequent complaint or proceeding. However, certain information may be disclosed as necessary or as required by law, including any written agreement signed by the parties, any threat of violence or plans to commit or conceal a crime, any acts subject to mandatory reporting, and other exceptions listed in RCW 7.07.050. The agreement must be signed by the complainant and a district representative who has the authority to bind the district.~~

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~~**V. Grievance or Complaint Procedure**~~

~~A. Basic Requirements of the District's Sex Discrimination Grievance Procedures~~

~~1. The district will treat complainants and respondents equitably.~~

~~2. The district will presume that the respondent is not responsible for the alleged sex discrimination until a determination is made at the conclusion of its grievance procedures.~~

~~3. The district requires that any Title IX coordinator, investigator, or decisionmaker not have a conflict of interest or bias for or against complainants or respondents generally or with respect to an individual complainant or respondent. A decisionmaker may be the same person as the Title IX coordinator or investigator.~~

~~B. Extension of Timeframes~~

~~The district may allow for the reasonable extension of the grievance process timeframes when agreed to by the complainant or for good cause.~~

~~C. Privacy and Personally Identifiable Information~~

~~1. The district will take reasonable steps to protect the privacy of the parties and witnesses. These steps will not restrict the ability of the parties to:~~

~~a) Obtain and present evidence, including by speaking to witnesses;~~

~~b) Consulting with family members or confidential resources such as medical providers, therapists, sexual assault resource centers, or others; or~~

~~c) Otherwise preparing for or participating in the grievance procedures.~~

~~2. The district will not disclose personally identifiable information obtained through this grievance procedure, except in the following circumstances:~~

~~a) To carry out the purposes of the district's obligations under this procedure, including to investigate and take other actions to address conduct that reasonably may constitute sex discrimination;~~

~~b) When the district has obtained prior written consent from a person with the legal right to consent to the disclosure;~~

~~c) When the information is disclosed to a parent, guardian, or other authorized legal representative with the legal right to receive the information;~~

~~d) As required by law or the terms and conditions of a state or federal award, including a grant award or other funding agreement; or~~

~~e) To the extent such disclosures are required by law.~~

~~D. Prohibition of Retaliation~~

~~Retaliation by the district, a student, an employee, or any other person authorized to provide any aid, benefit, or service under the district's education program or activity is prohibited. Retaliation includes student-to-student retaliation.~~

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~~E. Credibility Determinations~~

~~Credibility determinations will not be based on a person's status as a complainant, respondent, or witness.~~

~~G. Relevant Evidence~~

~~1. "Relevant" means related to the allegations of sex discrimination under investigation. Evidence is relevant when it may aid a decisionmaker in determining whether the alleged sex discrimination occurred.~~

~~2. The district will objectively evaluate all evidence that is relevant and not otherwise impermissible, including both inculpatory and exculpatory evidence.~~

~~H. Impermissible Evidence~~

~~The following types of evidence and questions are impermissible, regardless of whether they are relevant:~~

~~1. Evidence that is protected under a privilege recognized by federal or state law, unless the privilege has been voluntarily waived;~~

~~2. A party's or witness's records that are made or maintained by a physician, psychologist, or other recognized professional or paraprofessional in connection with the treatment of the party or witness, unless the district obtains that party's or witness's voluntary, written consent to use the records in the grievance procedures; and~~

~~3. Evidence that relates to the complainant's sexual interests or prior sexual conduct, unless evidence of prior sexual conduct is offered to prove that someone other than the respondent committed the alleged conduct or is evidence of prior sexual conduct with the respondent that is offered to prove consent to the alleged sex-based harassment. The fact of prior consensual sexual conduct does not by itself demonstrate or imply the complainant's consent to the alleged sex-based harassment or preclude a determination that sex-based harassment occurred.~~

~~I. Grievance or Complaint Process when a Complaint is Received~~

~~1. If the district receives a complaint under this procedure, the Title IX coordinator or designee will ensure the complaint is evaluated and, if appropriate, investigated.~~

~~2. If the Title IX coordinator or designee has a conflict of interest, they will delegate their authority to participate in this process.~~

~~3. Upon receipt of a complaint, if supportive measures have not already been offered, the Title IX coordinator or designee will offer supportive measures to both parties. If necessary, the Title IX coordinator or designee may gather additional information from the complainant to understand the parties involved, the conduct alleged, and the date and location of the alleged incident(s), if known.~~

~~J. Dismissal of a Complaint~~

~~1. The district may dismiss a complaint of sex discrimination if:~~

~~a) The district is unable to identify the respondent after taking reasonable steps to do so;~~

~~b) The respondent is not participating in the district's education program or activity and is not employed by the district;~~

~~c) The conduct alleged in the complaint would not constitute sex discrimination, even if proven. Before dismissing the complaint, the district will make reasonable efforts to clarify the allegations with the complainant;~~

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d) The complainant provided voluntary, written notice that they want to withdraw any or all of the allegations in the complaint, the Title IX coordinator declines to open a complaint, and any allegations that were not withdrawn would not constitute sex discrimination even if proven; or

e) The complaint lacks sufficient detail to objectively understand what acts are alleged and when and where such acts allegedly occurred. Before dismissing the complaint, the district will provide the complainant with written notice of what information is needed and explain that the district may dismiss the complaint if the information is not received within ten (10) calendar days. Such a dismissal will not prevent the complainant from filing other complaints in the future.

f) Pursuant to the state complaint procedure, it has been more than one year since the occurrence that is the subject matter of the complaint, except that this time limit may not be imposed if the complainant was prevented from filing a complaint due to (i) a specific misrepresentations by the district that it had resolved the problem forming the basis of the complaint or (ii) the withholding of information by the district that was required to be provided under Chapter 392-190 WAC.

2. If a complaint is dismissed, the district will promptly notify the complainant of the following, in writing:

a) The basis for the dismissal;

b) That the dismissal may be appealed within ten (10) calendar days by submitting a written notice of appeal to the district's Title IX coordinator.

c) That the dismissal may be appealed based on any of the following:

i) A procedural irregularity that would change the outcome;

ii) New evidence that was not reasonably available when the dismissal was made and that would change the outcome; or

iii) The Title IX coordinator or decisionmaker had a conflict of interest or bias for or against either party that would change the outcome.

3. If the dismissal occurs after the respondent has been notified of the allegations, the district will also simultaneously notify the respondent of the dismissal and basis for dismissal.

4. When a complaint is dismissed, the district will, at a minimum:

a) Offer supportive measures to the complainant as appropriate;

b) Offer supportive measures to the respondent, as appropriate, if the respondent was notified of the allegations; and

c) Take other prompt and effective steps to prevent sex discrimination within the district's education program or activity.

5. Dismissal of the complaint does not preclude taking action under another district policy or procedure.

K. Dismissal Appeal Process

1. The district will notify the parties of any appeal, including notice of the allegations if not previously provided to the respondent. For any appeal, the district will:

a) Implement appeal procedures equally for the parties;

b) Provide a decisionmaker who has been trained on Title IX regulations and did not take part in any

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~~investigation or the dismissal of the complaint;~~

~~c) Provide the parties a reasonable and equal opportunity to make a statement; and~~

~~d) Notify the parties of the result of the appeal and the rationale for the result.~~

~~2. All parties will be allowed a reasonable and equal opportunity to present such information as the dismissal appeal decisionmaker deems relevant and material at a dismissal appeal hearing.~~

~~3. Unless otherwise agreed to by the parties, the dismissal appeal decisionmaker will issue a written decision within ten (10) calendar days following the dismissal appeal hearing. The decision will be provided in a language the parties can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act.~~

~~4. The dismissal appeal decisionmaker's decision is final.~~

~~I. Notice of Allegations:~~

~~1. The district will acknowledge receipt of the formal complaint by providing the following written notice to the parties:~~

~~a) A copy of the district's sex discrimination complaint procedure and, if appropriate, an explanation of any informal resolution process available;~~

~~b) Notice of the allegations of sex discrimination with sufficient information to allow the parties to respond, including the identities of the parties involved in the incident, the conduct alleged to constitute sex discrimination, and the date(s) and location(s) of the alleged incident(s), if known;~~

~~c) A statement that the parties are entitled to an equal opportunity to receive an accurate description of the relevant evidence and, upon request, an equal opportunity to access the evidence;~~

~~d) Notice that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the investigation process; and~~

~~e) Notice of the district's prohibition of retaliation.~~

~~2. The district may consolidate complaints involving multiple respondents, complainants, or incidents when the allegations arise out of the same facts or circumstances. However, the district will not consolidate complaints if it violates FERPA and the district has not obtained prior written consent from the parents or eligible students to the disclosure of their records. This determination will be made on a case-by-case basis.~~

~~3. If, in the course of an investigation, the district decides to investigate additional allegations of sex discrimination that are not included in the original notice, the district will notify the parties of the additional allegations.~~

~~I. Investigation:~~

~~1. The investigator must be trained, impartial, and without a conflict of interest or bias for or against either party.~~

~~2. Time for Investigation~~

~~The district will conduct a prompt, thorough, and effective investigation. The district will seek to complete the investigation within twenty (20) calendar days of receiving the complaint. In the event an extension is needed, the district will provide written notice to the parties of the reason for the extension and the anticipated response date.~~

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3. Investigation Requirements

a) The Title IX coordinator will appoint an investigator. The investigator may be any properly trained staff member or administrator, including the Title IX coordinator, or an outside investigator.

b) The investigation must:

i) Provide a prompt and thorough investigation into the allegations;

ii) Gather evidence sufficient to reach a determination regarding responsibility;

iii) Provide an equal opportunity for the parties to present fact witnesses and other inculpatory and exculpatory evidence that is relevant and not otherwise impermissible;

iv) Review all evidence gathered through the investigation and determine what evidence is relevant and what evidence is impermissible;

v) Not restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence;

vi) Provide each party with an equal opportunity to access the evidence that is relevant and not otherwise impermissible; and

vii) Provide the parties with the opportunity to be accompanied by a parent, guardian, legal representative, or other adult of their choice during any grievance proceeding.

4. The district's investigation may not include records that were made or maintained by a physician, psychologist, or other recognized professional or paraprofessional in connection with the provision of treatment to the party unless the district obtains the party's voluntary, written consent.

M. Witness' and Parties' Rights

1. Complainants, respondents, and witnesses cannot be required to participate in the investigation or resolution processes but are encouraged to cooperate with the district's investigation.

2. Staff (excluding a staff complainant and respondent) are required to cooperate with and participate in the district's investigation and resolution process, unless this requirement conflicts with an applicable collective bargaining agreement. Represented employees will be informed of their right to representation if discipline could result from information provided during an interview.

N. Review of Evidence Prior to Determination

1. At least ten (10) calendar days prior to a determination of responsibility, the district will provide the parties with a report that provides written notice of the following:

a) A summary of any relevant and not otherwise impermissible evidence that is directly related to the allegations and was obtained as part of the investigation;

b) The findings of the investigation;

c) A statement that the report will be provided to the decisionmaker;

d) A statement that the parties are being given an accurate description of the evidence and, upon request, have an equal opportunity to inspect and review all evidence that is relevant and not otherwise impermissible;

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e) A statement that the parties have ten (10) calendar days from receipt of the notice to review the description of the evidence, request to review the evidence, and submit a written response to the decisionmaker;

f) A statement that both parties have an equal opportunity to ask specific, relevant questions about the evidence or identify areas in which the party believes further investigation is necessary; and

g) A statement that questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant unless offered to prove that someone other than the respondent committed the conduct alleged or unless they concern specific incidents of the complainant's prior sexual behavior with the respondent and are offered to prove consent.

2. If the parties request to inspect and review the relevant evidence, the district will take reasonable steps to prevent unauthorized disclosure of information obtained through the grievance procedures.

3. Disclosures of information and evidence for an administrative proceedings or litigation related to the complaint are authorized. However, the district may redact information if it has not received voluntary, written consent to disclose information that is privileged or was made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional made in connection with the treatment of the party.

O. Level One – Superintendent's Decision

1. The investigator will make findings and recommendations to the superintendent or designee.

2. Prior to issuing a decision, the superintendent or designee will objectively review all evidence gathered in the investigation and determine what evidence is relevant and what evidence is impermissible regardless of relevance. The superintendent or designee may also question parties and witnesses to adequately assess credibility prior to issuing a determination.

3. The superintendent or designee will issue a written decision. The superintendent or designee will seek to issue this decision within thirty (30) calendar days of the district's receipt of the complaint. In the event an extension is needed, the district will provide written notice to the parties of the anticipated response date.

4. Standard of Proof

a) Decisions will be based on the preponderance of the evidence;

b) Decisionmaker will evaluate relevant and not otherwise impermissible evidence for its persuasiveness;

5. Determination of Whether Sex Discrimination Occurred

The superintendent or designee will issue a written decision to the parties at the same time. The decision will include:

a) An explanation of the allegations;

b) The superintendent's or designee's factual findings;

c) An application of the district's policy to the facts, and a statement of conclusion as to whether a preponderance of the evidence substantiated that the complainant was subjected to sex discrimination;

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d) If sex discrimination was substantiated, a determination regarding responsibility, any disciplinary or other sanctions imposed on the respondent, whether remedies designed to restore or preserve equal access to the education program or activity will be provided, the corrective measures the district deems necessary, and a statement of assurance that the district will take steps to prevent the recurrence of sex discrimination and remedy its effects; and

e) Notice of the parties' right to appeal to the school board and the necessary filing information.

6. The district must simultaneously send a copy of the decision to the Office of the Superintendent of Public Instruction (OSPI).

7. Any corrective measures will be instituted as quickly as possible, but in no event more than thirty (30) calendar days after the decision is issued, unless there is an appeal and the district is barred by due process considerations or a lawful order from imposing the discipline until the appeal process is concluded.

8. Staff may also pursue complaints through the appropriate collective bargaining agreement process or anti-discrimination policy.

P. Disciplinary Sanctions and Remedies

1. Disciplinary Sanctions

a) Following a determination that sex-based harassment occurred, the district may impose disciplinary sanctions.

b) "Disciplinary sanctions" means consequences imposed on a respondent following a determination under these grievance procedures that the respondent violated the district's prohibition on sex discrimination. Disciplinary sanctions against students will be issued in accordance with Policy 3241, Student Discipline. Disciplinary sanctions against employees will be issued in accordance with Policy 5281, Disciplinary Action or Discharge.

2. Remedies

a) Following a determination that sex-based harassment occurred, the district may also provide remedies.

b) "Remedies" means measures provided to a complainant or any other person the district identifies as having had their equal access to the district's education program or activity limited or denied by sex discrimination. These measures are provided to restore or preserve that person's access to the education program or activity.

c) Remedies may include but are not limited to:

i. A continuation of supportive measures;

ii. Referrals to school counseling, health services, or the district's employee assistance program;

iii. Course and registration adjustments, such as retroactive withdrawals or changes in schedules;

iv. Adjustments to academic deadlines and course schedules;

v. Education to the individual and/or the community;

vi. Permanent or temporary alteration of work arrangements for employees;

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vii. Provision of school safety escorts;

viii. Climate surveys; and

ix. Limitations on contact between the parties.

Q. Level Two – Appeal to the Board of Directors

If a party disagrees with the superintendent's decision, the party may appeal to the district's board of directors or designee by filing a written notice of appeal with the secretary of the board within ten (10) calendar days of receipt of the superintendent's decision.

1. Notice of Appeal and Hearing

a) If the complaint involves a named respondent, the district will implement appeal procedures equally for both parties and provide written notice to both parties when an appeal is filed.

b) The board or designee will hold an appeal hearing within twenty (20) calendar days of receipt of the notice of appeal unless otherwise agreed to by the complainant and the superintendent or for good cause.

2. Appeal Decisionmaker

a) The board may delegate its authority for conducting an appeal to an individual or group. However, the board cannot delegate its authority to the superintendent, Title IX coordinator, complaint investigator, or any other employee of the district.

b) The appeal must be heard by an individual or group of individuals who are trained, impartial, and do not have any conflicts or bias for any of the parties.

3. The Appeal Hearing Process

a) All parties will be allowed a reasonable and equal opportunity to present such witnesses and testimony as the board or its designee deems relevant and material.

b) The board or its designee will issue a written decision within thirty (30) calendar days following the board's receipt of the notice of appeal. In the event an extension is needed, the board or its designee will provide written notice to the parties of the anticipated date by which the written decision will be issued. The decision will be provided in a language the parties can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act.

c) The decision will include notice of the right to appeal to OSPI and the necessary filing information. The district will send a copy of the appeal decision to OSPI.

R. Level Three – Appeal to the Office of the Superintendent of Public Instruction

1. If a party disagrees with the decision of the board of directors, or if the district fails to comply with this procedure, the party may file a complaint with OSPI.

2. A complaint must be received by OSPI within twenty (20) calendar days of the date the party received the board's decision, unless OSPI grants an extension for good cause. Complaints may be submitted by mail, fax, electronic mail, or hand delivery.

3. A complaint must be in writing and include:

a) A description of the specific acts, conditions, or circumstances alleged to violate applicable anti-discrimination laws;

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b) The name and contact information, including address, of the party;

c) The name and address of the district;

d) A copy of the district's complaint and appeal decision, if any;

e) A proposed resolution of the complaint or relief requested; and

f) If the allegations concern a specific student, the complaint must include the name and address of the student or, in the case of a homeless youth, contact information.

4. Upon receipt of a complaint, OSPI may open an investigation, which may include conducting an independent review. OSPI may also investigate additional issues related to the complaint that were not included in the initial complaint or appeal. Following the investigation, OSPI will make an independent determination as to whether the district has failed to comply with RCW 28A.642.010 or Chapter 392-190 WAC and will issue a written decision that addresses each allegation in the complaint and any other compliance issues identified. If OSPI determines that there was noncompliance, the written decision will assign corrective action and documentation requirements for the district.

5. All corrective actions must be completed within the timelines established by OSPI. If timely compliance is not achieved, OSPI may take further action, including but not limited to referring the district to appropriate state or federal agencies.

6. A complaint may be resolved at any time before the completion of the investigation if the district voluntarily agrees to resolve the complaint. OSPI may provide technical assistance and dispute resolution methods to resolve a complaint.

S. Level Four – Administrative Hearing

A party or the district may appeal the written decision of OSPI by filing a written notice of appeal with OSPI within thirty (30) calendar days of the date of receipt of OSPI's written decision. OSPI will conduct a formal administrative hearing under the Administrative Procedures Act, Chapter 34.05 RCW.

VI. Other Complaint Options

A. Office for Civil Rights (OCR), US Department of Education

OCR enforces federal civil rights laws, which prohibit discrimination in public schools on the basis of race, color, national origin, sex, disability, and age. File complaints with OCR within 180 calendar days of the date of the alleged discrimination.

US Department of Education
Office of Civil Rights
400 Maryland Ave.
Washington DC 20202
OCR@ed.gov
Fax: 202-245-8392

B. Washington State Human Rights Commission (WSHRC)

WSHRC enforces the Washington Law Against Discrimination (RCW 49.60), which prohibits discrimination in employment and places of public accommodation, including schools. File complaints with WSHRC within six (6) months of the date of the alleged discrimination.

Washington State Human Rights Commission
711 Capitol Way, Suite 402
PO Box 42490

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~~Olympia, WA 98504-2490~~
~~frontdesk@hum.wa.gov~~
~~Telephone: 1-800-233-3247~~
~~www.hum.wa.gov~~

~~C. For Complaints involving employee-on-employee conduct:~~

~~Equal Employment Opportunity Commission (EEOC)~~
~~Seattle Field Office~~
~~909 First Avenue, Suite 400~~
~~Seattle, WA 98104-1061~~
~~Telephone: 800-669-4000~~
~~Facsimile: 206-220-6911~~
~~TTY: 800-669-6820~~
~~ASL Video Phone: 844-234-5122~~
~~www.eeoc.gov~~

~~VII. Prohibited Conduct~~

~~This section describes the specific forms of prohibited sex discrimination, sex-based harassment, and retaliation. Speech or conduct protected by the First Amendment will not be considered a violation of this policy. All definitions below encompass actual and attempted offenses.~~

~~A. "Consent" or "affirmative consent" means a conscious and voluntary agreement to engage in sexual activity as a requirement before sexual activity, as defined in RCW 28A.300.475.~~

~~B. "Sex discrimination" means different treatment with respect to a person's employment or participation in a district education program or activity that is discriminatory and based on sex, sex stereotypes, sex characteristics, pregnancy or related conditions, sexual orientation, and gender identity. There are three types of sex discrimination, which are defined below: different (or disparate) treatment, disparate impact, and sex-based harassment.~~

~~C. "Different (or disparate) treatment discrimination" means any intentional differential treatment of a person that is based on a person's actual or perceived sex and that excludes a person from participation in, denies a person benefits of, or otherwise adversely affects a term or condition of a person's participation in the district's education program or activity.~~

~~D. "Disparate impact discrimination" means policies or practices that appear to be neutral though unintentionally result in a disproportionate impact on the basis of sex and that excludes a person from participation in, denies a person benefits of, or otherwise adversely affects a term or condition of a person's participation in the district's education program or activity.~~

~~E. "Sex-based harassment" is a form of sex discrimination and means:~~

~~1. Sexual harassment and other harassment on the basis of sex, including on the basis of:~~

~~a) Sex stereotypes;~~

~~b) Sex characteristics;~~

~~c) Pregnancy or related conditions;~~

~~d) Sexual orientation, and~~

~~e) Gender identity.~~

~~2. There are different types of sex harassment, including "quid pro quo harassment," "hostile environment harassment," and specific sexual offenses defined further below.~~

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~~F. "Quid pro quo harassment" means an employee, agent, or other person authorized by the district to provide an aid, benefit, or service under the district's education program or activity explicitly or impliedly conditioning the provision of such an aid, benefit, or service on a person's participation in unwelcome sexual conduct.~~

~~G. "Hostile environment harassment," means unwelcome sex-based conduct that, based on the totality of the circumstances, is subjectively and objectively offensive and is so severe or pervasive that it limits or denies a person's ability to participate in or benefit from the recipient's education program or activity (i.e., creates a hostile environment).~~

~~Whether a hostile environment has been created is a fact-specific inquiry that includes consideration of the following:~~

~~1. The degree to which the conduct affected the complainant's ability to access the district's education program or activity;~~

~~2. The type, frequency, and duration of the conduct;~~

~~3. The parties' ages, roles within the district's education program or activity, previous interactions, and other factors about each party that may be relevant to evaluating the effects of the conduct;~~

~~4. The location of the conduct and the context in which the conduct occurred, including that the district may consider the effects of off-campus conduct when evaluating whether there is a hostile environment on campus; and~~

~~5. Other sex-based harassment in the district's education program or activity.~~

~~H. "Sexual assault" means an offense classified as a forcible or nonforcible sex offense under the uniform crime reporting system of the Federal Bureau of Investigation. This includes rape, fondling, sodomy, sexual assault with an object, statutory rape, and incest.~~

~~I. "Dating violence" means violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the victim and where the existence of such a relationship shall be determined based on the following factors: the length of the relationship, the type of relationship, and the frequency of interaction.~~

~~J. "Domestic violence" means felony or misdemeanor crimes committed by a person who is a current or former spouse or intimate partner of the victim under the family or domestic violence laws of the jurisdiction, or a person similarly situated to a spouse of the victim; is cohabitating, or has cohabitated, with the victim as a spouse or intimate partner; shares a child in common with the victim; or commits acts against a youth or adult victim who is protected from those acts under the family or domestic violence laws of the jurisdiction.~~

~~K. "Stalking" means engaging in a course of conduct directed at a specific person that would cause a reasonable person to fear for the person's safety or the safety of others, or to suffer substantial emotional distress.~~

~~L. Sex-based harassment also includes:~~

~~1. Acts of sexual violence;~~

~~2. Unwelcome sexual or gender-directed conduct or communication that interferes with an individual's educational performance or creates an intimidating, hostile, or offensive environment;~~

~~3. Unwelcome sexual advances;~~

~~4. Unwelcome requests for sexual favors;~~

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5. ~~Sexual demands when submission is a stated or implied condition of obtaining an educational benefit; and~~

6. ~~Sexual demands where submission or rejection is a factor in an academic or other school related decision affecting an individual.~~

M. ~~"Retaliation" means intimidation, threats, coercion, or discrimination against any person for the purpose of interfering with any right or privilege secured by Title IX or this policy and procedure or because the person reported information, made a complaint, was a witness or provided information, assisted, or participated or refused to participate in any manner in an investigation or appeal under Title IX or the grievance process.~~

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~~**APPROVED:**~~

~~Jeff Snell, Superintendent~~ ~~Vancouver Public Schools~~	~~Date~~

REPEAL Sex Discrimination and Sex-Based Harassment of Students Prohibited – Implementation Procedure

~~This procedure sets forth the implementation requirements of Policy 3205 and Policy 5011 and specifies the district's obligations with respect to establishing an educational and work environment that does not tolerate sex discrimination, including sex-based harassment.~~

~~I. District Notice and Information~~

~~A. Information about Policy 3205 (Sex Discrimination and Sex-Based Harassment of Students Prohibited) and Policy 5011 (Sex Discrimination and Sex-Based Harassment of Staff Prohibited) and their procedures will be clearly stated and:~~

~~1. Conspicuously posted on the district's website;~~

~~2. Conspicuously posted throughout each school building;~~

~~3. Provided to each employee; and~~

~~4. Included in each student, staff, volunteer, and parent handbook.~~

~~B. Such notices will:~~

~~1. Include a statement that the district does not discriminate on the basis of sex and prohibits sex-discrimination and sex-based harassment in its education program or activity and in employment;~~

~~2. State that questions about Title IX may be referred to the district's Title IX coordinator, the Office for Civil Rights, or both;~~

~~3. Identify the district's Title IX coordinator and provide contact information, including name or title, office address, telephone number, and email address;~~

~~4. Explain how to locate the district's sex-discrimination policy and grievance procedures;~~

~~5. Explain how to report information about conduct that may constitute sex-discrimination; and~~

~~6. Explain how to make a complaint of sex discrimination.~~

~~C. If necessary, due to the format or size of any publication, the district may instead include a statement that the district prohibits sex discrimination, including sex-based harassment, in any education program or activity that it operates. It will also state that individuals may report concerns or questions to the Title IX coordinator, and provide the location of the notice described above on the district's website.~~

~~D. Copies of Policy 3205 (Sex Discrimination and Sex-Based Harassment of Students Prohibited) and Policy 5011 (Sex Discrimination and Sex-Based Harassment of Staff Prohibited) and their procedures, will be posted on the district website and in each district building in a place accessible to students, staff, volunteers, and parents, and visitors.~~

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E. At a minimum, information about the recognition and prevention of sex discrimination, including sex-based harassment, and the elements of this policy will be included in orientation sessions for staff, students, and regular volunteers.

F. Students will be provided with age-appropriate information on the recognition and prevention of sexual harassment and their rights and responsibilities under this and other district policies at student orientation sessions and on other appropriate occasions.

G. Students, staff, volunteers, and parents will be informed that sexual harassment may include, but is not limited to:

1. Pressuring a person for sexual favors;

2. Writing graffiti of a sexual nature on school property;

3. Distributing or displaying sexually explicit texts, emails, or pictures;

4. Making unwelcome, offensive or inappropriate sexual comments, gestures, or jokes;

5. Making unwelcome comments about someone based on their sex, appearance, sexual orientation, or gender identity or expression;

6. Unwelcome touching of a sexual nature or stalking a person; and

7. Physical violence, including rape, sexual assault, dating violence, and domestic violence.

II. The Title IX Team

The Title IX team refers to the Title IX coordinator, investigators, decisionmakers, appeal decisionmakers, informal resolution facilitators, and people with the authority to modify or terminate supportive measures.

III. Roles of Members of the Title IX Team

Any individual designated with any of the following roles must not have a conflict of interest or bias for or against any of the parties:

A. The Title IX Coordinator is the person authorized by the superintendent to coordinate the district's federal and state and sex discrimination and sex-based harassment regulation compliance efforts. The district's Title IX Coordinator can be reached at:

Jeff Fish
Executive Director, Human Resources
Vancouver School District
2901 Falk Rd.
Vancouver, WA 98661
360-313-1000
Jeff.fish@vansd.org

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B. A person with authority to modify or terminate supportive measures is an impartial employee and someone other than the employee who made the initial decision on supportive measures. This employee may not be a subordinate of the Title IX coordinator. This person has the authority to modify or reverse a decision about supportive measures, upon request of a party. The decision will be based on a determination that the initial supportive measure decision was inconsistent with the definition of supportive measures under Title IX, at 34 CFR 106.2.

C. An informal resolution facilitator is a person who has received training on the rules and practices associated with the district's informal resolution processes and on how to serve impartially, including avoiding conflicts of interest and bias. The complaint investigator, decisionmaker, or appeal decisionmaker cannot serve as the informal resolution facilitator. The facilitator must not have a conflict of interest or bias for or against either of the parties. However, a facilitator will not be considered biased solely because they are an employee of the district or are paid to serve as the informal resolution facilitator.

D. An investigator is a person who is impartial and has been trained to investigate compliance with the district's sex discrimination grievance process as described in Grievance Procedure 3205.1. The investigator can be the same person who serves as the Title IX coordinator or the decisionmaker.

E. The decisionmaker is the superintendent or a designee who reaches the final determination of responsibility for the allegation of sex discrimination or sex-based harassment. The decisionmaker can be the same person who serves as the Title IX Coordinator or the investigator.

F. The appeal decisionmaker is the board of directors or designee. The superintendent or any other employee of the district cannot be designated to serve as the appeal decisionmaker.

IV. Training for the Title IX Team

A. All employees responsible for implementing the district's grievance procedures must be trained on the following topics, to the extent related to their responsibilities:

1. The definition of sex-based harassment under Title IX and state law;

2. The scope of the district's education program or activity;

3. How to conduct an investigation, the grievance process, and the informal resolution process;

4. How to serve impartially;

5. Their responsibilities under Chapter 392-190 WAC; and

6. How to raise awareness of and eliminate bias based on sex, race, creed, religion, color, national origin, honorably discharged veteran or military status, sexual orientation, gender expression, gender identity, the presence of any sensory, mental, or physical disability, or the use of a trained dog guide or service animal.

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~~V. Additional training requirements~~

~~A. The Title IX coordinator and any designees must be trained on:~~

~~1. The responsibilities of the Title IX coordinator;~~

~~2. Specific responsibilities for ensuring equal opportunity to pregnant and parenting students;~~

~~3. The provision of supportive measures;~~

~~4. The district's recordkeeping requirements; and~~

~~5. Any other training necessary to coordinate the district's compliance with Title IX.~~

~~B. Investigators must also receive training on writing an investigative report that fairly summarizes relevant evidence.~~

~~C. The decisionmaker and appeal decisionmaker must also receive training on use of evidence in the grievance process, including the requirement that questions and evidence about a complainant's sexual predisposition or prior sexual conduct are not relevant unless offered to prove that someone other than the respondent committed the alleged conduct or specific incidents of the complainant's prior sexual behavior with respect to the respondent are offered to prove consent.~~

~~D. Appeal decisionmakers must also receive training on any technology to be used during a grievance hearing.~~

~~VI. Compliance Responsibilities~~

~~A. The Title IX coordinator will inform the school community of the district's responsibilities under Policy 3205 and related policies and procedures, including Policy 3206 (Pregnant and Parenting Students), Policy 3211 (Gender Inclusive Schools), and Policy 5210 (Sex Discrimination and Sex-Based Harassment of Staff Prohibited).~~

~~B. The Title IX Coordinator will ensure the district has a process and system in place for offering and coordinating supportive measures for all students and staff.~~

~~C. The Title IX Coordinator will ensure the district has a process and system in place to provide support and modifications to pregnant and parenting students and staff.~~

~~D. The Title IX Coordinator will annually:~~

~~1. Monitor the district's education program and activities for barriers to reporting information about conduct that reasonably may constitute sex discrimination under Title IX and this policy and procedure; and~~

~~2. Take steps reasonably calculated to address such barriers.~~

~~E. When notified of conduct that may constitute sex discrimination under Title IX, Washington State law, or the district's policies, the Title IX coordinator or designee will take the following actions to promptly and effectively end any discrimination or harassment in the district's education program or activity, prevent its recurrence, and remedy its effects:~~

1. ~~Treat the complainant and respondent equitably;~~

2. ~~Offer and coordinate supportive measures, as appropriate, for the complainant;~~

3. ~~Offer and coordinate supportive measures, as appropriate, for the respondent if the district has initiated grievance procedures or offered an informal resolution process to the respondent; and~~

4. ~~Notify the complainant or, if the complainant is unknown, the individual who reported the district's grievance procedures under Grievance Procedure 3205.1 and the informal resolution process, if available and appropriate.~~

F. ~~If a complaint is initiated under the grievance procedures, the Title IX coordinator or designee will:~~

1. ~~Evaluate the complaint and, as appropriate, initiate the grievance procedures or other applicable procedures;~~

2. ~~Describe and offer the informal resolution process, if available and appropriate; and~~

3. ~~Notify the respondent of the grievance procedures, if appropriate and applicable.~~

G. ~~The Title IX coordinator or designee will determine whether to initiate a complaint of sex discrimination under the grievance procedures in the absence of a complaint, if a complaint has been withdrawn, or if the informal resolution process has been terminated. To make this determination, the Title IX coordinator or designee will consider, at a minimum, the following factors:~~

1. ~~The complainant's request not to proceed with a complaint;~~

2. ~~The complainant's reasonable safety concerns regarding a complaint;~~

3. ~~The risk that additional acts of sex discrimination could occur if a complaint is not initiated;~~

4. ~~The severity of the alleged sex discrimination, including whether the discrimination, if established, would require the removal of a respondent from campus or imposition of another disciplinary sanction;~~

5. ~~The age and relationship of the parties, including whether the respondent is an employee of the district;~~

6. ~~The scope of the alleged sex discrimination, including information suggesting a pattern of discriminatory conduct or discrimination affecting multiple people;~~

7. ~~The availability of evidence to assist a decisionmaker in determining whether sex discrimination occurred; and~~

8. ~~Whether the district could end the alleged sex discrimination and prevent its recurrence without initiating its grievance procedures.~~

H. ~~The Title IX coordinator or designee may initiate a complaint if they determine the alleged~~

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~~conduct presents an imminent and serious threat to the health or safety of the complainant or others, or prevents the district from ensuring equal access on the basis of sex.~~

~~I. The Title IX coordinator or designee will ensure that any corrective measures and remedial actions are provided as quickly as possible, but in no event more than thirty (30) days after the determination of responsibility. If the respondent appeals the imposition of discipline, the district may be barred from imposing the discipline until the appeal process is concluded.~~

~~VII. Staff Responsibilities~~

~~A. Any district employee who witnesses or receives a report or complaint about sex discrimination, including sex-based harassment, is responsible for informing the district's Title IX coordinator. All staff are also responsible for directing reporters to the complaint process.~~

~~B. Any district employee who is informed by a student, or a student's parent, guardian, or legal representative, of the student's pregnancy or pregnancy-related condition must promptly:~~

~~1. Provide them with the Title IX coordinator's contact information; and~~

~~2. Inform the student (or the student's legal representative) that the Title IX coordinator can coordinate specific actions to prevent pregnancy-related discrimination and support equal access to the district's education program or activity.~~

~~3. Such notice does not need to be provided if the employee reasonably believes that the Title IX coordinator has already been notified.~~

~~C. Reports of other forms of discrimination and discriminatory harassment will be referred to the district's civil rights coordinator. Reports of disability discrimination or harassment will be referred to the district's Section 504 coordinator. Suspected child abuse must be reported to law enforcement or child protective services.~~

~~D. The district will not provide assistance in obtaining educational employment or provide a recommendation of educational employment for an employee, contractor, or agent that the district, or an individual acting on behalf of the district, knows or has probable cause to believe, has engaged in sexual misconduct with a student or minor in violation of the law.~~

~~VIII. District Training and Orientation Requirements~~

~~A. A fixed component of all initial and annual orientation sessions for staff, students, and regular volunteers will introduce the elements of the district's policy and procedure prohibiting sex discrimination, including the district's grievance procedure and implementation procedure. Staff will be provided information on recognizing and preventing sex discrimination, including sex-based harassment. Staff will be fully informed of their responsibilities for responding to reports of sex discrimination, the district's complaint procedures, and their roles and responsibilities under the policy and procedure.~~

~~B. All employees must receive training on the district's legal obligations and policy and procedures prohibiting sex discrimination, including those related to pregnancy and pregnancy-related conditions, marital status, and parental status. The training will include, at a minimum:~~

~~1. Employees' obligations to provide notice of the Title IX coordinator if the employee witnesses or receives a report or complaint about sex discrimination;~~

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2. ~~The district's prohibition of sex discrimination, including prohibitions of harassment based on sexual orientation, gender identity, gender expression, pregnancy, pregnancy-related conditions, and marital or pregnancy status; and~~

3. ~~The district's prohibition of retaliation against a student or staff member for exercising these rights, including imposing or threatening to impose negative educational outcomes because a student requests accommodation, files a complaint, or otherwise exercises their rights under the policy.~~

C. ~~All employees will be reminded of their legal responsibility to report suspected child abuse and how some allegations of sex-based harassment may implicate that responsibility. Regular volunteers will be informed of any similar reporting responsibilities.~~

~~IX. Investigation Recordkeeping~~

~~The district will maintain, for a period of at least seven years, the following records:~~

1. ~~All materials used for Title IX training for employees, the Title IX coordinator, investigators, decisionmakers, and any person who facilitates an informal resolution process for the district. The district will make such materials available upon request.~~

2. ~~Records of any actions, including supportive measures, taken in response to a report of sex-based harassment under Title IX, even if no complaint is filed.~~

3. ~~Records of any informal resolution and the result.~~

4. ~~Records of each sex discrimination investigation, including any determination regarding responsibility and any recording or transcript; any disciplinary sanctions imposed on the respondent and any remedies provided to the complainant; and any appeal.~~

~~X. Policy and Procedure Review~~

A. ~~Annually, the superintendent or designee and the Title IX coordinator will convene an ad hoc committee composed of representatives of certificated and classified staff, volunteers, students, and parents to review the use and efficacy of this policy and procedure.~~

B. ~~Based on the review of the committee, the superintendent will prepare a report to the board, including any recommended policy changes. The superintendent will consider adopting changes to this procedure if recommended by the committee.~~

REPEAL

~~APPROVED:~~

~~Jeff Snell, Superintendent~~ ~~Vancouver Public Schools~~	~~Date~~

(DRAFT 02-18-25)

NEW Procedure – Sexual Harassment of Students Prohibited

The procedure is intended to set forth the requirements of Policy 3205, including the process for a prompt, thorough, and equitable investigation of allegations of sexual harassment and the need to take appropriate steps to resolve such situations. If sexual harassment is found to have created a hostile environment, staff must take immediate action to eliminate the harassment, prevent its reoccurrence, and address its effects.

This procedure applies to sexual harassment (including sexual violence) targeted at students carried out by other students, employees, or third parties involved in district activities. The district will also consider the effects of off-campus conduct when evaluating whether there is a hostile environment on campus. The district has jurisdiction over these complaints pursuant to Title IX of the Education Amendments of 1972, Chapter 28A.640 RCW, and Chapter 392-190 WAC.

I. Title IX Coordinator, Investigator, and Decision Maker

A. The district will designate and authorize one employee to act as Title IX coordinator to coordinate the district's state and federal sex discrimination and sexual harassment regulation compliance efforts. The decision-maker who reaches the final determination of responsibility for alleged Title IX sexual harassment will be the superintendent or designee. The decision-maker cannot be the same person who serves as the Title IX coordinator or the investigator of the Title IX complaint.

B. The Title IX coordinator's name, title, office address, telephone number, and email address will be available on the district website; in handbooks/catalogs available to staff, students, and parents; and in the district's nondiscrimination statement.

C. The district designates the following individual as Title IX coordinator:

Jeff Fish
Executive Director, Human Resources
Vancouver School District
2901 Falk Rd.
Vancouver, WA 98661
360-313-1000
Jeff.fish@vansd.org

D. Any individual designated as Title IX coordinator, an investigator, or decision-maker, and any person who facilitates an informal resolution process, must not have a conflict of interest or bias for or against the person who made the complaint ("complainant") or the person reported to have engaged in conduct that could constitute sexual harassment ("respondent"), in general or individually. Such persons must also receive training on the following:

1. The definition of sexual harassment under Title IX and state law;

2. The scope of the district's education program or activity;

3. How to conduct an investigation and the district's grievance process, including hearings, appeals, and informal resolution processes, as applicable;

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4. How to serve impartially, including by avoiding prejudgment of the facts at issue, conflicts of interest, and bias;

5. Their responsibilities under Chapter 392-190 WAC; and

6. How to raise awareness of and eliminate bias based on sex, race, creed, religion, color, national origin, honorably discharged veteran or military status, sexual orientation, gender expression, gender identity, the presence of any sensory, mental, or physical disability, or the use of a trained dog guide or service animal.

E. District investigators must also receive training on issues of relevance to create an investigative report that fairly summarizes relevant evidence.

F. District decision-makers must also receive training on any technology to be used during live hearings if the district provides for a hearing. Decision-makers must also receive training on issues of relevance of questions and evidence, including the requirement that questions and evidence about a complainant's sexual predisposition or prior sexual conduct are not relevant unless (1) such questions and evidence are offered to prove that someone other than the respondent committed the alleged conduct, or (2) questions and evidence concerning specific incidents of the complainant's prior sexual behavior with respect to the respondent are offered to prove consent.

G. Any training materials used to train the Title IX coordinator, investigators, decision-makers, and any person who facilitates an informal resolution process must not rely on sex stereotypes and must promote impartial investigations and adjudications of complaints. Such training materials will be publicly available via the district's website.

II. Notice of Sexual Harassment Policy and Procedure

A. Information about the district's sexual harassment policy and complaint procedure will be easily understandable and conspicuously posted throughout each school building. Such information will also be reproduced in each student, staff, volunteer, and parent handbook. This notice will be provided in a language that each parent and guardian can understand.

B. In addition to the posting and reproduction of this procedure and Policy 3205, the District will provide annual notice to employees that complaints pursuant to this procedure may be filed at

<u>In Person</u>:
Vancouver School District
Central Administrative Office
Attn: Title IX Coordinator
2901 Falk Rd.
Vancouver, WA 98661

<u>By Mail</u>:
Vancouver School District
Central Administrative Office
Attn: Title IX Coordinator
PO Box 8937.
Vancouver, WA 98668-8937

III. Responding to Notice of Sexual Harassment, Including Formal Complaints

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A. The district is on notice and will take action when any employee knows, or in the exercise of reasonable care should know, about possible sexual harassment. This includes

   1. Informal (i.e., verbal) reports of sexual harassment, referred to in this procedure as "informal complaints," and

   2. Formal, written complaints made to the Title IX coordinator, as described in Section VII, below.

B. Upon notice of possible sexual harassment, staff will notify the Title IX coordinator. Additionally, staff will also inform an appropriate supervisor or professional staff member when they receive complaints of sexual harassment, especially when the complaint is beyond their training to resolve or alleges serious misconduct.

C. In the event of an alleged sexual assault, the principal will immediately: (1) inform the Title IX coordinator (and Civil Rights Compliance Coordinator, if a different individual) so that the district can appropriately respond to the incident consistent with its own grievance procedures; (2) inform law enforcement; and (3) notify the targeted student(s) and their parents/guardians of their right to file a criminal complaint and a sexual harassment complaint simultaneously.

D. Once the district is on notice of possible sexual harassment, the Title IX coordinator will promptly contact the complainant to discuss the availability of supportive measures (as described in Section IV, below), consider the complainant's wishes with respect to supportive measures, inform the complainant of the availability of supportive measures with or without the filing of a formal complaint, and explain to the complainant the process for filing a formal complaint.

E. When an informal complaint of sexual harassment is made, the Title IX coordinator may inquire of the complainant regarding the report of sexual harassment to determine whether a formal complaint is warranted. The Title IX coordinator will inform the complainant that imposition of disciplinary sanctions or other actions that are not supportive measures against a respondent will not be available unless a formal complaint occurs.

F. A complainant may file a formal complaint at any time, including while receiving supportive measures.

IV. Supportive Measures

A. Supportive measures must be offered to the complainant, before or after the filing of a formal complaint, or where no formal complaint has been filed. Supportive measures may also be provided to the respondent. Supportive measures are non-disciplinary, non-punitive individualized services offered as appropriate, as reasonably available, and without fee or charge to the complainant or respondent. Supportive measures should be designed to restore or preserve access to the district's education program or activity without unreasonably burdening the other party.

B. Supportive measures may include:

   1. An opportunity for the complainant to explain to the alleged harasser that the conduct is unwelcome, offensive, or inappropriate, either in writing or face-to-face;

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2. A statement from a staff member to the alleged harasser that the alleged conduct is not appropriate and could lead to discipline if proven or repeated;

3. A general public statement from a building administrator reviewing the district sexual harassment policy without identifying the complainant;

4. Developing a safety plan;

5. Modifications of class schedules;

6. Mutual restrictions on contact between the parties;

7. Increased security and monitoring of certain areas of the campus or school building; or

8. Providing staff and/or student training.

V. Confidentiality of Complaints

A. The district will maintain as confidential any supportive measures provided to the complainant or respondent, to the extent that maintaining such confidentiality would not impair the ability of the district to provide the supportive measures.

B. If a complainant requests that their name not be revealed to the alleged harasser or asks that the district not investigate or seek action against the alleged harasser, the request will be forwarded to the Title IX coordinator. The Title IX coordinator should inform the complainant that honoring the request may limit the district's ability to respond fully to the incident, including pursuing disciplinary action against the alleged harasser.

C. If the complainant still requests that their name not be disclosed to the alleged harasser or that the district not investigate or seek action against the alleged harasser, the district will need to determine whether it can honor such a request while still providing a safe and nondiscriminatory environment for all students, staff, and other third parties engaging in district activities, including the person who reported the sexual harassment. Although a complainant's request to have their name withheld may limit the district's ability to respond fully to an individual allegation of sexual harassment, the district will use other appropriate means available to address the sexual harassment.

VI. Retaliation Prohibited

Title IX and state law prohibit retaliation against any individual who files a complaint under these laws or participates in a complaint investigation. When an informal or formal complaint of sexual harassment is made, the district will take steps to stop further harassment and prevent any retaliation against the person who made the complaint, was the subject of the harassment, or provided information as a witness. The district will investigate all allegations of retaliation and take actions against those found to have retaliated.

VII. Formal Complaints

A. Filing a Formal Complaint

1. Anyone may file a formal complaint of sexual harassment. All formal complaints will be in writing and will set forth the specific acts, conditions, or circumstances alleged to have

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occurred and to constitute sexual harassment. The Title IX coordinator may draft the complaint based on the report of the complainant for the complainant to review and approve. The Title IX coordinator may also conclude that the district needs to conduct an investigation based on information known to the district, regardless of the complainant's interest in filing a formal complaint.

2. The time period for filing a formal complaint to which Title IX does not apply is one year from the date of the occurrence that is the subject matter of the complaint. However, this complaint filing deadline may not be imposed if the complainant was prevented from filing due to: (1) specific misrepresentations by the district that it had resolved the problem forming the basis of the complaint; or (2) withholding of information that the district was required to provide under Chapter 392-190 WAC or guidelines supplementing that chapter issued by the Office of Superintendent of Public Instruction ("OSPI").

3. Complaints may be submitted by mail, fax, email, or hand-delivery to the district Title IX coordinator. Any district employee who receives a complaint that meets these criteria will promptly notify the Title IX coordinator.

B. Title IX Coordinator Review of Formal Complaints

1. The Title IX coordinator will assess whether a formal complaint of sexual harassment meets the criteria for a Title IX complaint.

2. Under Title IX, the term "sexual harassment" means:

   a) An employee of the district conditioning the provision of an aid, benefit, or service on an individual's participation in unwelcome sexual conduct;

   b) Conduct that creates a "hostile environment," meaning unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the education program or activity; or

   c) "Sexual assault," as defined in 20 U.S.C. § 1092(f)(6)(A)(v); "dating violence," as defined in 34 U.S.C. § 12291(a)(10); "domestic violence," as defined in 34 U.S.C. § 12291(a)(8); or "stalking," as defined in 34 U.S.C. § 12291(a)(30).

3. The district will implement additional Title IX procedures in response to a sexual harassment complaint when the alleged conduct constitutes sexual harassment as defined by Title IX regulations and:

   a) The written complaint is filed by the complainant, by the complainant's legal guardian, or by the Title IX coordinator;

   b) The complaint requests that the district investigate the allegation(s) of sexual harassment, as defined under Title IX regulations;

   c) The complaint is against a named respondent who, at the time of the alleged harassment, was under the control of the district (such as a student, an employee, or a volunteer);

   d) The alleged sexually harassing conduct occurred in the United States; and

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e) The complainant is participating in or attempting to participate in the district's educational program or activity at the time.

4. If the formal complaint is determined not to meet the criteria for a Title IX complaint, the district will conduct the investigation and response procedures in accordance with Section VII.C, below.

5. If the formal complaint is determined to meet the criteria for a Title IX complaint, the district will conduct the investigation by implementing additional Title IX procedures and investigate in accordance with Section VII.D, below**.**

C. Formal Complaint Process

1. Acknowledging a Formal Complaint

a) Upon receipt of a formal complaint, the Title IX coordinator will provide the complainant a copy of this procedure in a language that the complainant canunderstand.

b) In response to notice of sexual harassment, the district will take prompt and appropriate action to investigate and take prompt and effective steps reasonably calculated to end harassment, eliminate the hostile environment, prevent its recurrence, and as appropriate, remedy its effects. To that end, the Title IX coordinator will receive and investigate all formal, written complaints of sexual harassment or information known to the district that the Title IX coordinator believes requires further investigation. The Title IX coordinator will delegate authority to participate in this process if such action is necessary to avoid any potential conflicts of interest.

2. Investigating a Formal Complaint

a) Investigations will be carried out in a manner that is prompt, thorough, reliable, and impartial. During the investigation process, the complainant and respondent(s), if the complainant has identified an accused harasser(s), will have an equal opportunity to present witnesses and relevant evidence. Complainants, respondents, and witnesses may have a trusted adult with them during any district-initiated investigatory activities. The district and complainant may also agree to resolve the complaint in lieu of an investigation.

b) When the investigation is completed, the investigator will compile a full written report of the complaint and the results of the investigation.

3. Mediation

a) At any time during the complaint procedure set forth in WAC 392-190-065 through -075, a district may, at its own expense, offer mediation. The complainant and the district may agree to extend the complaint process deadlines in order to pursue mediation.

b) The purpose of mediation is to provide both the complainant and the district an opportunity to resolve disputes and reach a mutually acceptable agreement through the use of an impartial mediator. Mediation must be voluntary and requires the mutual agreement of both parties. It may be terminated by either party at any time during the

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mediation process. It may not be used to deny or delay a complainant's right to utilize the complaint procedures.

c) Mediation must be conducted by a qualified and impartial mediator who may not: (a) be an employee of any school district, public charter school, or other public or private agency that is providing education related services to a student who is the subject of the complaint being mediated; or (b) have a personal or professional conflict of interest. A mediator is not considered an employee of the district or charter school or other public or private agency solely because he or she serves as a mediator.

d) If the parties reach agreement through mediation, they may execute a legally binding agreement that sets forth the resolution and states that all discussions that occurred during the course of mediation will remain confidential and may not be used as evidence in any subsequent complaint, due process hearing, or civil proceeding. The agreement must be signed by the complainant and a district representative who has authority to bind the district.

4. Response of the Superintendent's Designee to a Formal Complaint

a) The superintendent's designee will respond in writing to the complainant within thirty (30) calendar days of receipt of the complaint, unless otherwise agreed to by the complainant or if exceptional circumstances require an extension of time. In the event an extension is needed, the district will notify the parties in writing of the reason for the extension and the anticipated response date.

b) The response of the superintendent's designee will include: (1) a summary of the results of the investigation; (2) a statement as to whether a preponderance of the evidence establishes that the complainant was sexually harassed; (3) if sexual harassment is found to have occurred, the corrective measures or remedies for the complainant the district will take, including an assurance that the district will take steps to prevent the recurrence and remedy the effects of the sexual harassment on the complainant and others, if appropriate; (4) notice of the right to appeal to the superintendent or designee and the necessary filing information; and (5) a statement concerning whether the district has failed to comply with Chapter 392-190 WAC or guidelines supplementing that chapter issued by OSPI and, in the event of noncompliance, the corrective measures deemed necessary to correct the noncompliance. At the time the district responds to the complainant, the district must send a copy of the response to OSPI.

c) The response will be provided in a language that the complainant can understand and may require language assistance for complainants with limited English proficiency in accordance with Title VI of the Civil Rights Act of 1964.

d) If the complaint alleges harassment by a named respondent, the district will provide the respondent with notice of the outcome of the investigation, notice of any discipline or corrective action imposed by the district on the respondent, and notice of their right to appeal any discipline under relevant policies and procedures.

e) Any corrective measures deemed necessary will be instituted as quickly as possible, but in no event more than thirty (30) days after the mailing of the written response, unless the accused is appealing the imposition of discipline and the district is barred by due process considerations or a lawful order from imposing the discipline until the

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appeal process is concluded. Staff may also pursue complaints through the appropriate collective bargaining agreement process or anti-discrimination policy.

f) The district will inform the complainant and their parent/guardian how to report any subsequent problems. Additionally, the district will conduct follow-up inquiries to see if there have been any new incidents and to promptly respond and appropriately address continuing or new problems. Follow-up inquiries will follow a timeline agreed to by the district and complainant.

g) The complainant and the district may agree to resolve the complaint in lieu of an investigation. If the complaint is resolved to the satisfaction of the parties involved, no further action is necessary.

h) The decision of the superintendent's designee may be appealed as provided in Section VIII.

D. Formal Complaint Process with Additional Title IX Requirements

The following sections outline the process the district will take to respond to complaints of sexual harassment when state law and Title IX both apply.

1. Acknowledging a Title IX Formal Complaint

The Title IX coordinator will receive and investigate all formal, written complaints of sexual harassment or information that the Title IX coordinator believes requires further investigation. The Title IX coordinator will delegate authority to participate in this process if such action is necessary to avoid any potential conflicts of interest. Upon receipt of a complaint, the Title IX coordinator will offer supportive measures to the complainant and may offer such measures to the respondent.

The district will acknowledge receipt of the formal complaint by providing the following written notice to the respondent and complainant:

a) A copy of the district's discrimination complaint procedure in a language the parties can understand.

b) Notice of the allegations of sexual harassment potentially constituting sexual harassment, including sufficient details known at the time and with sufficient time to prepare a response before any initial interview. Such sufficient detail includes the identities of the parties involved in the incident, if known, the conduct allegedly constituting sexual harassment, and the date and location of the alleged incident, if known.

c) Notice that the parties may have an advisor of their choice, who may be an attorney or non-attorney and who may inspect and review evidence of the alleged sexual harassment.

d) Notice that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility for alleged sexual harassment is made at the conclusion of the grievance process.

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e) Notice of any provision in student conduct policies and procedures that prohibits false statements or submitting false information.

If, in the course of an investigation, the district decides to investigate allegations about the complainant or respondent that are not included in the initial notice described above, the district must provide notice of the additional allegations to the parties whose identities are known.

2. Investigating a Title IX Formal Complaint

a) The district must investigate allegations contained in a formal complaint.

b) The district must dismiss the formal complaint under Title IX if the conduct alleged would not constitute sexual harassment under Title IX regulations even if proven, did not occur in the district's education program or activity, or did not occur against a person in the United States. Such dismissal does not preclude action under another provision of district policy or procedure or under sexual harassment investigation procedures as required by state law (see Section VII.C of this procedure).

c) The district may dismiss a Title IX formal complaint when: (1) a complainant notifies the Title IX coordinator in writing that the complainant would like to withdraw the formal complaint or any allegations therein; (2) the respondent is no longer enrolled in or employed by the district; or (3) specific circumstances prevent the district from gathering evidence sufficient to reach a determination as to the formal complaint or allegations therein. Upon dismissal for any of the above reasons, the district must promptly send written notice of dismissal and the reason(s) therefore simultaneously to the parties.

d) The district adopts a "preponderance of the evidence" as the standard of proof it will use in reaching decisions regarding complaints.

e) The district may consolidate formal complaints against more than one respondent or by more than one complainant, where the allegations of sexual harassment arise out of the same facts or circumstances.

f) The district's investigation of a Title IX complaint must:

i. Include a prompt and thorough investigation into the allegations in the complaint.

ii. Ensure that the district bears the burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility for the alleged sexual harassment. The district may not access, consider, disclose, or otherwise use a party's records that are made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional acting or assisting in their professional capacity and made and maintained in connection with the provision of treatment to the party unless the district obtains the party's voluntary, written consent to do so.

iii. Provide an equal opportunity for the parties to present witnesses, including fact and expert witnesses, and other inculpatory and exculpatory evidence.

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iv. Not restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence.

v. Provide the parties with the same opportunities to have others present during any grievance proceeding, including the opportunity to be accompanied to any related meeting or proceeding by the advisor of their choice, who may be an attorney or non-attorney. The district will apply any restrictions regarding the extent to which an advisor may participate equally to both parties.

vi. Provide to a party whose participation is invited or expected written notice of the date, time, location, participants, and purpose of all hearings, interviews, or other meetings, with sufficient time for the parties to prepare to participate.

vii. Include an objective evaluation of all relevant evidence, including both inculpatory and exculpatory evidence.

viii. Ensure that credibility determinations may not be based on a person's status as a complainant, respondent, or witness.

ix. Not require, allow, rely upon, or otherwise use questions or evidence that constitute, or seek disclosure of, information protected under a legally recognized privilege (e.g., the attorney-client privilege), unless the person holding such privilege has waived the privilege.

g) Before completing the investigative report, the investigator must provide an equal opportunity for the parties to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in the formal complaint so that each party can meaningfully respond to the evidence before the conclusion of the investigation. This includes evidence that the district does not intend to rely on in reaching a determination of responsibility, and regardless of the source of the evidence. The parties will have at least ten (10) days to submit a written response for the investigator to consider before completing the investigative report.

h) At least ten (10) days prior to making a determination regarding responsibility, the investigator must create an investigative report that fairly summarizes relevant evidence and send the investigative report in an electronic or hard copy format to each party and each party's advisor for their review and written response.

i) After sending the investigative report to the parties, but before reaching a final determination, the decision-maker must give each party the opportunity to submit written, relevant questions the party wants asked of any party or witness, provide each party with the answers, and allow for additional, limited follow-up questions from each party. Questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant unless they are offered to prove that someone other than the respondent committed the alleged conduct or unless they concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent. The decision-maker must explain to the party proposing the questions any decision to exclude a question as not relevant.

j) The district's Title IX investigative and grievance process is not required to include investigative hearings.

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k) Temporary delay of the investigation process and/or an extension of timeframes described in this Section VII.D are allowed for good cause with written notice to the complainant and the respondent and the reason for the action. Good cause may include considerations such as the absence of a party, a party's advisor, or a witness; concurrent law enforcement activity; or the need for language assistance or accommodation of disabilities.

3. Discipline and Emergency Removals for Alleged Sexual Harassment under Title IX

a) A respondent who is accused of sexual harassment under Title IX is presumed not responsible for the alleged conduct until a determination regarding responsibility is made at the conclusion of the grievance process. The district may not impose any disciplinary sanctions, or other actions that are not supportive measures, against the respondent until the district has determined the respondent was responsible for the sexual harassment at the conclusion of the grievance process.

b) These additional Title IX sexual harassment procedures do not preclude a district from removing a student from school on an emergency basis consistent with Policy 3241 and Procedure 3241P, Student Discipline.

4. Title IX Informal Resolution Process

a) At any time prior to a determination in a formal Title IX complaint, the district may permit a complainant to waive the formal grievance process in favor of an informal resolution process not involving a full investigation and adjudication, provided that the district obtains the parties' voluntary, written consent. The district may not offer informal resolution of sexual harassment allegations against a respondent who is an employee of the district.

b) When facilitating an informal resolution process, the district will provide the parties with written notice disclosing: (1) the allegations; (2) the requirements for the informal resolution process; (3) the circumstances in which the parties would be precluded from continuing with a formal resolution process for the same allegations; (4) a party's right to withdraw from the informal resolution process and resume the formal grievance process at any time prior to agreeing to a resolution; and (5) any consequences resulting from participating in the informal resolution process, including the records that will be maintained or could be shared.

c) The district may not require the waiver of the right to an investigation and adjudication of formal complaints of sexual harassment under Title IX as a condition of enrollment, employment, or enjoyment of any other right, nor may the district require the parties to participate in an informal resolution process. The district will not offer an informal resolution process unless a formal complaint is filed.

d) The Title IX informal resolution process will conclude within forty-five (45) calendar days of the complainant's decision to waive the formal complaint process, unless good cause exists for extension of the timeframe. If the informal resolution process has not concluded by that time and the complainant has not withdrawn the complaint, the Title IX coordinator will proceed with the investigation of the formal complaint in accordance with this procedure.

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5. Response of the Superintendent's Designee to a Title IX Formal Complaint

The superintendent's designee will respond to the Title IX formal complaint as the decision-maker. The designee will not be the Title IX coordinator or the investigator. At the conclusion of the investigation, the decision-maker must issue a written determination of responsibility regarding the alleged sexual harassment within thirty (30) calendar days of receipt of the complaint, unless otherwise agreed to by the complainant or if exceptional circumstances require an extension of the time limit. In the event an extension is needed, the district will notify the parties in writing of the reason for the extension and the anticipated response date.

The written determination of the decision-maker must be issued to the parties simultaneously and must include the following:

a) Identification of the allegations potentially constituting sexual harassment under Title IX regulations;

b) A description of the procedural steps taken from the time of the district's receipt of the formal complaint through the determination, including any notifications to the parties, interviews with parties and witnesses, site visits, methods used to gather other evidence, and hearings held;

c) Findings supporting the determination;

d) A summary of the results of the investigation;

e) Conclusions regarding the application of the district's policies to the facts;

f) A statement as to whether a preponderance of the evidence establishes that the complainant was sexually harassed;

g) A statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility, any disciplinary or other sanctions imposed on the respondent, and whether remedies designed to restore or preserve equal access to the education program or activity will be provided to the complainant;

h) If sexual harassment is found to have occurred, the corrective measures the district deems necessary, including assurance that the district will take steps to prevent the recurrence and remedy the effects of the sexual harassment on the complainant and others, if appropriate;

i) A statement concerning whether the district has failed to comply with Chapter 392-190 WAC or guidelines supplementing that chapter issued by OSPI; and

j) Notice of the parties' right to appeal to the district's superintendent or designee and the necessary filing information.

k) The response of the decision-maker will be provided in a language the complainant and respondent can understand and may require language assistance for complainants with limited English proficiency in accordance with Title VI of the Civil Rights Act of 1964.

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l) At the time the district responds to the parties, the district must send a copy of the response to OSPI.

m) Disciplinary sanctions and remedies for students that may be implemented following any determination of responsibility include those corrective actions described in Policy 3241 and Procedure 3241P including, without limitation, short- and long-term suspension, expulsion, and emergency expulsion. Disciplinary sanctions and remedies for employees that may be implemented following any determination of responsibility include, without limitation, written reprimands, suspensions without pay, demotion, transfer, nonrenewal, and termination consistent with any relevant collective bargaining agreement and district policy and procedure.

n) Any corrective measures deemed necessary will be instituted as quickly as possible, but in no event more than thirty (30) days after the mailing of a written response, unless the accused is appealing the imposition of discipline and the district is barred by due process considerations or a lawful order from imposing the discipline until the appeal process is concluded. Staff may also pursue complaints through the appropriate collective bargaining agreement process or anti-discrimination policy.

o) The decision of the superintendent's designee may be appealed as provided in Section VII.

VII. APPEALS

A. Appeal to the Superintendent or Designee

1. Notice of Appeal and Hearing

a) If the complainant disagrees with the written decision of the superintendent's designee, the complainant may appeal the decision by filing a written notice of appeal with the superintendent within ten (10) calendar days following the date upon which the complainant received the response. If the Title IX requirements are used under Section VII(D), both the complainant and the respondent may appeal under this procedure, and the district will implement appeal procedures equally for both parties and provide written notice to the other party when an appeal is filed.

b) A party who is permitted to appeal under this procedure may appeal due to one or more of the following reasons, which are not exclusive: (1) the sufficiency of the factual findings; (2) the validity of the conclusions regarding whether there have been violations of law or district policy and procedure; (3) the appropriateness of the corrective actions or other remedies determined by the designee; (4) procedural irregularity that affected the outcome of the matter; (5) new evidence that was not reasonably available at the time the determination was made that could affect the outcome of the matter; or (6) the Title IX coordinator, investigator, or decision-maker had a conflict of interest or bias for or against complainants or respondents generally or the individual complainant or respondent that affected the outcome of the matter.

c) The appealing party will be allowed a reasonable opportunity to submit a written statement for the appeal. If the Title IX requirements are used under Section VII(D), the other party will be allowed an equal opportunity to submit a written statement. The written statement should clearly identify the reason(s) for the appeal, explain the

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party's arguments, and set forth the party's desired remedy (if any). The written statement must be submitted to the decision-maker within twenty (20) calendar days following the filing of the notice of appeal, unless good cause exists for extension of the timeframe.

2. Appeal Decision

a) The decision-maker for the appeal will be the superintendent or designee. The decision-maker who reached the determination regarding responsibility or dismissal, the investigator, and the Title IX coordinator will not be the decision-maker for purposes of an appeal under this procedure. The district will ensure that any individual serving as a decision-maker for an appeal under this procedure has received the training required for decision-makers as described by this procedure.

b) The decision-maker for the appeal will review any written statements by the parties, the investigative report and associated evidence, the decision, and other material deemed relevant and material. The decision-maker will provide a written appeal decision to the appealing party within thirty (30) calendar days following the filing of the notice of appeal, unless good cause exists for extension of the timeframe. If the additional Title IX requirements are used under Section VII(D), the written appeal decision will be simultaneously sent to both parties.

c) The written appeal decision will describe the result of the appeal and the rationale for the result. The decision will include notice of the complainant's right to file a complaint with OSPI and will identify where and to whom the complaint must be filed. The district will send a copy of the appeal decision to OSPI.

d) The decision will be provided in a language that the parties receiving the decision can understand, which may require language assistance for parties with limited English proficiency in accordance with Title VI of the Civil Rights Act.

B. Complaint to OSPI

1. Filing of Complaint

a) If a complainant disagrees with the appeal decision of the district's superintendent or designee, or if the district fails to comply with the procedures in WAC 392-190-065 through -070, the party may file a complaint with OSPI.

b) A complaint must be received by OSPI on or before the twentieth (20) calendar day following the date upon which the complainant received written notice of the appeal decision of the superintendent or designee, unless OSPI grants an extension for good cause. Complaints may be submitted by mail, fax, electronic mail, or hand delivery.

c) A complaint must be in writing and include: (1) a description of the specific acts, conditions, or circumstances alleged to violate applicable anti-sexual harassment laws; (2) the name and contact information, including address, of the complainant; (3) the name and address of the district subject to the complaint; (4) a copy of the district's complaint and appeal decision, if any; and (5) a proposed resolution of the complaint or relief requested. If the allegations regard a specific student, the complaint must also include the name and address of the student, or in the case of a

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homeless child or youth, contact information, and the name of the school district that the student attends.

2. Investigation, Determination, and Corrective Action

a) Upon receipt of a complaint, OSPI may initiate an investigation, which may include conducting an independent onsite review. OSPI may also investigate additional issues related to the complaint that were not included in the initial complaint or appeal to the superintendent or designee.

b) Following an investigation, OSPI will make an independent determination as to whether the district has failed to comply with Chapter 392-190 WAC or the guidelines supplementing that chapter issued by OSPI and will issue a written decision to the complainant and the district that addresses each allegation in the complaint and any other noncompliance issues it has identified. The written decision will include corrective actions deemed necessary to correct noncompliance and documentation the district must provide to demonstrate that corrective action has been completed.

c) All corrective actions must be completed within the timelines established by OSPI in the written decision unless OSPI grants an extension. If timely compliance is not achieved, OSPI may take action including, but not limited to, referring the district to appropriate state or federal agencies empowered to order compliance.

d) A complaint may be resolved at any time when, before the completion of the investigation, the district voluntarily agrees to resolve the complaint. OSPI may provide technical assistance and dispute resolution methods to resolve a complaint.

3. Administrative Hearing

A complainant or the district desiring to appeal the written decision of OSPI may file a written notice of appeal with OSPI within thirty (30) calendar days following the date of receipt of OSPI's written decision. OSPI will conduct a formal administrative hearing in conformance with the Washington Administrative Procedures Act, Chapter 34.05 RCW.

VIII. Other Complaint Options

A. Office for Civil Rights (OCR), U.S. Department of Education

1. OCR enforces several federal civil rights laws that prohibit discrimination in public schools on the basis of race, color, national origin, sex, disability, and age.

2. Complaints to OCR must be filed within 180 calendar days of the date of the alleged discrimination.

Office for Civil Rights
U.S. Department of Education
915 Second Avenue Room 3310
Seattle, WA 98174-1099

Telephone: 206-607-1600
FAX: 206-607-1601; TDD: 800-877-8339

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Email: OCR.Seattle@ed.gov
Website: www.ed.gov/ocr

B. Washington State Human Rights Commission (WSHRC)

1. WSHRC enforces the Washington Law Against Discrimination (RCW 49.60), which prohibits discrimination in employment and in places of public accommodation, including schools.

2. Complaints to WSHRC must be filed within six months of the date of the alleged discrimination.

WSHRC
PO Box 42490
Olympia, WA 98504-2490
Email: frontdesk@hum.wa.gov
Telephone: 1-800-233-3247 Option #4
Facsimile: 1-360-586-2282
TTY: 1-800-300-7525
www.hum.wa.gov

X. Investigation Record Keeping

The district will maintain for a period of seven (7) years records of:

1. Each sexual harassment investigation, including any determination regarding responsibility and any audio or audiovisual recording or transcript required by federal law, any disciplinary sanctions imposed on the respondent, and any remedies provided to the complainant designed to restore or preserve equal access to the district's education program or activity.

2. Any appeal and the result.

3. Any informal resolution and the result.

4. Records of any actions, including supportive measures, taken in response to a report or formal complaint of sexual harassment under Title IX.

5. All materials used to train Title IX coordinators, investigators, decision-makers, and any person who facilitates an informal resolution process.

XI. TRAINING AND ORIENTATION

A. A fixed component of all district orientation sessions for staff, students, and regular volunteers will introduce the elements of this procedure and the corresponding policy. Staff will be provided information on recognizing and preventing sexual harassment. Staff will be fully informed of their responsibilities when on notice of sexual harassment, the formal complaint procedures, and their roles and responsibilities under the policy and procedure.

B. Certificated staff will be reminded of their legal responsibility to report suspected child abuse and how that responsibility may be implicated by some allegations of sexual harassment.

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Regular volunteers will receive the portions of this component of orientation relevant to their responsibilities.

C. Students will be provided with age-appropriate information on the recognition and prevention of sexual harassment and their rights and responsibilities under this and other district policies and rules at student orientation sessions and on other appropriate occasions, which may include parents/guardians.

D. Staff, volunteers, students, and parents will be informed that sexual harassment may include, but is not limited to:

1. Demands for sexual favors in exchange for preferential treatment or something of value;
2. Stating or implying that a person will lose something if he or she does not submit to a sexual request;
3. Penalizing a person for refusing to submit to a sexual advance, or providing a benefit to someone who does;
4. Making unwelcome, offensive, or inappropriate sexually suggestive remarks, comments, gestures, or jokes, or remarks of a sexual nature, including about a person's appearance, gender, or conduct;
5. Using derogatory sexual terms for a person;
6. Standing too close, inappropriately touching, cornering, or stalking a person; or
7. Displaying offensive or inappropriate sexual illustrations on school property.

APPROVED:

_____ _____

Jeff Snell, Superintendent Date
Vancouver Public Schools

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(DRAFT 02-18-25)

REPEAL Procedure – Sex Discrimination and Sex – Based Harassment of Staff Prohibited

~~**I. Definitions**~~

~~A. The district uses the definitions included in Grievance Procedure 3205.1 for sex discrimination, including sex-based harassment, of employees and applicants.~~

~~B. Examples of sex discrimination of employees or applicants include but are not limited to taking any of the following actions on the basis of sex stereotypes, sex characteristics, sexual orientation, gender identity, pregnancy, or related conditions:~~

~~1. Refusal to hire or promote;~~

~~2. Firing an employee or forcing them to quit or retire;~~

~~3. Sex-based harassment, such as "quid pro quo harassment" and "hostile environment harassment";~~

~~4. Other forms of sex-based harassment, such as specific offenses of sexual assault, dating violence, domestic violence, or stalking;~~

~~5. Providing unequal benefits or compensation; and~~

~~6. Other materially unequal terms, conditions, or privileges of employment.~~

~~**II. Retaliation Prohibited**~~

~~A. "Retaliation" means intimidation, threats, coercion, or discrimination against any person for the purpose of interfering with any right or privilege secured by Title IX or this policy and procedure or because the person reported information, made a complaint, was a witness or provided information, assisted, or participated or refused to participate in any manner in an investigation or appeal under Title IX or the grievance process. Retaliation by the district, a student, or an employee or other person authorized by the district to provide any aid, benefit, or service under the district's education program or activity is prohibited.~~

~~B. When the district has information about conduct that reasonably may constitute retaliation, the district will respond promptly and effectively, inform the Title IX coordinator, and provide notice of the district's grievance process for addressing complaints of retaliation. Upon receiving a complaint alleging retaliation, the district will initiate its grievance procedures as described below or, as appropriate, an informal resolution process.~~

~~**III. Grievance Procedure**~~

~~A. The district uses Grievance Procedure 3205.1 as the process for receiving, investigating, and resolving reports or complaints of sex discrimination of an employee or applicant, including harassment based on a person's actual or perceived pregnancy status, and retaliation.~~

B. Complaints will be taken seriously and handled in the same manner as other sex discrimination and sex-based harassment complaints. Grievance Procedure 3205.1 is designed to provide for a prompt, thorough, and equitable investigation of complaints and to take appropriate steps to resolve such situations. If sex discrimination or retaliation is found to have occurred, the district will take prompt and effective action to eliminate the discrimination or retaliation, prevent its reoccurrence and, as appropriate, remedy its effects.

C. Other forms of discrimination against employees or applicants that do not fall under this policy and procedure may be addressed under other district policies and procedures, such as Policy 5010, Nondiscrimination and Affirmative Action.

D. For questions about this procedure, contact the district's Title IX coordinator, who can be reached at:

Jeff Fish
Executive Director, Human Resources
Vancouver School District
2901 Falk Rd.
Vancouver, WA 98661
Telephone: 360-313-1000
jeff.fish@vansd.org

IV. Staff Responsibilities, Training, and District Notice

The district uses Implementation Procedure 3205.2 to describe the following information, as applicable to this policy:

A. The roles, responsibilities, and training requirements for district staff;

B. That the district will provide information about this policy to staff, students, parents, and volunteers and will develop age-appropriate information and education regarding the identification, recognition, and prevention of sex-based harassment; and

C. Where and how district will provide notice about the policy.

APPROVED:

Jeff Snell, Superintendent Vancouver Public Schools	Date

NEW Procedure - Sexual Harassment of District Staff Prohibited

The procedure is intended to set forth the requirements of Policy 5011, including the process for a prompt, thorough, and equitable investigation of allegations of sexual harassment and the need to take appropriate steps to resolve such situations. If sexual harassment is found to have created a hostile environment, staff must take immediate action to eliminate the harassment, prevent its reoccurrence, and address its effects.

This procedure applies to sexual harassment (including sexual violence) targeted at district employees carried out by students, other employees, or third parties involved in school district activities. The district has jurisdiction over these complaints pursuant to Title IX of the Education Amendments of 1972, Chapter 28A.640, RCW and Chapter 392-190 WAC.

A formal complaint filed by or on behalf of a student complainant against an employee respondent will be investigated under the definitions, requirements, and procedures of Policy 3205 and Procedure 3205P.

I. Title IX Coordinator, Investigator and Decision-Maker

A. Any individual designated as Title IX Coordinator, an investigator or a decision-maker for purposes of a Title IX formal complaint must meet the qualifications and training requirements described in Procedure 3205P for those roles.

B. The district designates the following individual as Title IX coordinator:

Jeff Fish
Executive Director, Human Resources
Vancouver School District
2901 Falk Rd.
Vancouver, WA 98661
360-313-1000
Jeff.fish@vansd.org

II. Notice of Sexual Harassment Policy and Procedure

A. Information about the district's sexual harassment policy will be easily understandable and conspicuously posted throughout each school building, provided to each employee and reproduced in each staff, volunteer, and parent handbook.

B. In addition to the posting and reproduction of this procedure and Policy 5011, the district will provide annual notice to employees that complaints pursuant to this procedure may be filed at:

In Person:
Vancouver School District
Central Administrative Office
Attn: Title IX Coordinator
2901 Falk Rd.
Vancouver, WA 98661

By Mail:

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Vancouver School District
Central Administrative Office
Attn: Title IX Coordinator
PO Box 8937.
Vancouver, WA 98668-8937

III. Responding to Notice of Sexual Harassment, Including Informal Complaints

A. The district is on notice and will take action when any employee knows, or in the exercise of reasonable care should know, about possible sexual harassment, including:

1. Informal (i.e., verbal) reports of sexual harassment, referred to in this procedure as "informal complaints" and

2. Formal, written complaints made to the Title IX coordinator, as described in the Formal Complaint Process section below, Section VII.

B. Upon notice of possible sexual harassment, staff will notify the Title IX coordinator. Additionally, staff will also inform an appropriate supervisor or professional staff member when they receive complaints of sexual harassment, especially when the complaint is beyond their training to resolve or alleges serious misconduct.

C. In the event of an alleged sexual assault, the principal will immediately: (1) inform the Title IX coordinator so that the district can appropriately respond to the incident consistent with its own grievance procedures; and (2) inform law enforcement. The principal will notify the targeted district staff person of their right to file a criminal complaint and a sexual harassment complaint simultaneously.

D. Once the district is on notice of possible sexual harassment, the Title IX coordinator will promptly contact the complainant to discuss the availability of supportive measures (as described in the Supportive Measures section below, Section IV), consider the complainant's wishes with respect to supportive measures, inform the complainant of the availability of supportive measures with or without the filing of a formal complaint, and explain to the complainant the process for filing a formal complaint.

E. When an informal complaint of sexual harassment is made, the Title IX coordinator may discuss the report of sexual harassment with the complainant to determine whether a formal complaint is warranted. The Title IX coordinator will inform the complainant that imposition of disciplinary sanctions or other actions that are not supportive measures against a respondent will not be available unless a formal complaint occurs.

F. A complainant may file a formal complaint at any time, including while receiving supportive measures.

IV. Supportive Measures

A. Supportive measures must be offered to the complainant, before or after the filing of a formal complaint or where no formal complaint has been filed. Supportive measures may also be provided to the respondent. Supportive measures are non-disciplinary, non-punitive individualized services offered as appropriate, as reasonably available and without fee or charge to the complainant or respondent. Supportive measures should be designed to restore or

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preserve access to the district's education program or activity without unreasonably burdening the other party.

B. Supportive measures may include:

1. An opportunity for the complainant to explain to the alleged harasser that their conduct is unwelcome, offensive, or inappropriate, either in writing or face-to-face;

2. A statement from a staff member to the alleged harasser that the alleged conduct is not appropriate and could lead to discipline if proven or repeated;

3. A general public statement from a building administrator reviewing the district sexual harassment policy without identifying the complainant;

4. Mutual restrictions on contact between the parties;

5. Modifications of work schedules;

6. Mutual restrictions on contact between the parties;

7. Increased security and monitoring of certain areas of the campus or school building; or

8. Providing staff and/or student training.

V. Confidentiality of Complaints

A. The district will maintain as confidential any supportive measures provided to the complainant or respondent, to the extent that maintaining such confidentiality would not impair the ability of the district to provide the supportive measures.

B. If a complainant requests that their name not be revealed to the alleged harasser or asks that the district not investigate or seek action against the alleged harasser, the request will be forwarded to the Title IX coordinator for evaluation. The Title IX coordinator should inform the complainant that honoring the request may limit the district's ability to respond fully to the incident, including pursuing disciplinary action against the alleged harasser.

C. If the complainant still requests that their name not be disclosed to the alleged harasser or that the district not investigate or seek action against the alleged harasser, the district will need to determine whether or not it can honor such a request while still providing a safe and nondiscriminatory environment for all students, staff, and other third parties engaging in district activities, including the person who reported the sexual harassment. Although a complainant's request to have their name withheld may limit the district's ability to respond fully to an individual allegation of sexual harassment, the district will use other appropriate means available to address the sexual harassment.

VI. Retaliation Prohibited

Title IX and state law prohibits retaliation against any individual who files a complaint under these laws or participates in a complaint investigation. When an informal or formal complaint of sexual harassment is made, the district will take steps to stop further harassment and prevent any retaliation against the person who made the complaint, was the subject of the harassment, or against those

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who provided information as a witness. The district will investigate all allegations of retaliation and take actions against those found to have retaliated.

VII. Formal Complaint Process

A. Anyone may file a formal complaint of sexual harassment. All formal complaints will be in writing and will set forth the specific acts, conditions or circumstances alleged to have occurred and to constitute sexual harassment. Complaints may be submitted by mail, fax, email or hand-delivery to the district Title IX coordinator. Any district employee who receives a complaint that meets these criteria will promptly notify the Title IX coordinator.

B. Formal complaints in which an employee is the complainant will follow the procedure and requirements for formal complaints under Procedure 3205P.

VII. Other Complaint Options

A. Office for Civil Rights (OCR), U.S. Department of Education

1. OCR enforces several federal civil rights laws, which prohibit discrimination in public schools on the basis of race, color, national origin, sex, disability, and age.

2. Complaints to OCR must be filed within 180 calendar days of the date of the alleged discrimination.

   Office for Civil Rights
   U.S. Department of Education
   915 Second Avenue Room 3310
   Seattle, WA 98174-1099

   Telephone: 206-607-1600
   FAX: 206-607-1601; TDD: 800-877-8339
   Email: OCR.Seattle@ed.gov
   Website: www.ed.gov/ocr

B. Washington State Human Rights Commission (WSHRC)

1. WSHRC enforces the Washington Law Against Discrimination (RCW 49.60), which prohibits discrimination in employment and in places of public accommodation, including schools.

2. Complaints to WSHRC must be filed within six months of the date of the alleged discrimination.

   WSHRC
   PO Box 42490
   Olympia, WA 98504-2490
   Email: frontdesk@hum.wa.gov
   Telephone: 1-800-233-3247 Option #4
   Facsimile: 1-360-586-2282
   TTY: 1-800-300-7525

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www.hum.wa.gov

IX. Training and Orientation

A. A fixed component of all district orientation sessions for staff, students, and regular volunteers will introduce the elements of this procedure and the corresponding policy. Staff will be provided information on recognizing and preventing sexual harassment. Staff will be fully informed of their responsibilities when on notice of sexual harassment, the formal complaint procedures, and their roles and responsibilities under the policy and procedure.

B. Certificated staff will be reminded of their legal responsibility to report suspected child abuse and how that responsibility may be implicated by some allegations of sexual harassment. Regular volunteers will receive the portions of this component of orientation relevant to their responsibilities.

C. Students will be provided with age-appropriate information on the recognition and prevention of sexual harassment and their rights and responsibilities under this and other district policies and rules at student orientation sessions and on other appropriate occasions, which may include parents/guardians.

D. Staff, volunteers, students, and parents will be informed that sexual harassment may include, but is not limited to:

1. Demands for sexual favors in exchange for preferential treatment or something of value;
2. Stating or implying that a person will lose something if he or she does not submit to a sexual request;
3. Penalizing a person for refusing to submit to a sexual advance, or providing a benefit to someone who does;
4. Making unwelcome, offensive, or inappropriate sexually suggestive remarks, comments, gestures, or jokes, or remarks of a sexual nature, including about a person's appearance, gender, or conduct;
5. Using derogatory sexual terms for a person;
6. Standing too close, inappropriately touching, cornering, or stalking a person; or
7. Displaying offensive or inappropriate sexual illustrations on school property.

APPROVED:

_____ _____

Jeff Snell, Superintendent Date
Vancouver Public Schools

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